

# Mere Catholicity

*Quod ubique, quod semper, quod ab omnibus, what has been believed  
everywhere, always, and by all.*

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## The confession

*I hold the whole faith of the undivided Catholic Church: the Holy Scriptures, the Nicene Creed, the seven Ecumenical Councils, the apostolic succession and the government of bishops, the sacramental mysteries and the real presence of Christ in the Eucharist, the regeneration given in Baptism, and the consensus of the Fathers and the sensus fidelium of the first thousand years.*

*I honor the Bishop of Rome as first among equals, within the limits the Fathers of East and West both knew. I hold that Christ preserves His whole Church from final failure, and that outside this Church there is no salvation, because the Church is His Body, one across her present divisions, and it is entered by faith and baptism.*

### 1. The position

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This position is not a novelty. It is the recovery of a criterion older than the divisions it hopes to heal: *quod ubique, quod semper, quod ab omnibus*, what has been believed everywhere, always, and by all. Call it **mere catholicity**, the faith of the one Church of the first millennium, confessed before and across its tears. It is *catholic* in the root sense of *kata-holon*, according to the whole. Its premise is that the whole is larger than any single see that now claims to be the whole.

Its shape is simple to state and demanding to hold. The deposit of faith is guarded at the level of the ecumenical councils, the Creed, the sacraments, and the apostolic succession. It is not guarded at the level of any single patriarchate's later self-description. Indefectibility belongs to the *una sancta*, the whole Body, which will not finally fail. It does not belong to the Roman institution alone, whose judgments the first millennium received as weighty and appealable rather than irreformable of themselves, as the record of Honorius in section 4 shows. Rome is honored as first among equals, a true primacy of witness and of charity, first in dignity and first to be heard. It is not a universal monarchy, and Rome is not by herself the measure of the faith.

### On the word “merely.”

The word is used here in Lewis’s sense, not as a diminishment. It denotes the common core that all the apostolic communions still share, what was Christianity before it was Roman, Byzantine, or Reformed. To be *merely* catholic is to refuse to be less than the whole in order to remain loyal to a part.

### Whose confession this is.

Because its criterion is the received faith of the first millennium rather than submission to any one see, this confession belongs to no single jurisdiction, and it sits differently in each communion. The Roman Catholic and the Orthodox each hold it at a real cost to their own communion, the high Anglican may hold it entire, and the Lutheran and Reformed share planks without the whole. The map is drawn tier by tier in section 6, and the costs are priced there and in the closing list. We are Roman Catholics and worship at the Roman altar. The position is wider than Rome, and for us precisely as Roman Catholics it is held at cost, as it is for the Orthodox.

### A key to the grades used in this paper.

Most claims here carry one of a small set of grades, and the reader should know them from the start. A few acts in the appendix carry their grade in plain words where the set does not fit. **Consensus** names what the undivided Church held everywhere and always, the grade on which all else rests. **Staked** names a reading or synthesis this confession commits to and argues without claiming the ancient consensus for it. **Kept gladly** marks later teaching received here because it restates the consensus. **Declined** marks an act put forward as binding the whole Church that the whole Body has not received, meaning not yet received, never condemned. **Held open** marks a question the undivided Church left free and this confession leaves free as well. **Held as hope** marks what may be prayed for but not asserted. **Received in seed** marks a development whose root is ancient while its grown form still awaits the whole Body. **Held lightly** marks what is used in practice while its binding status stays unresolved, as the filioque and the seven-sacrament count are held. **Not kept** marks what is neither received nor carried here, as the Tridentine profession of obedience. An entry may carry split grades, for an act and its content can grade apart, as with the

Assumption, *Ordinatio Sacerdotalis*, and the filioque, where content may ripen or stand while the act stays declined.

## **2. What is held, and at what grade**

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These entries are the common ground on which the position stands, and the measure against which everything else is weighed. They are of two kinds. The first states the consensus of the first millennium. The second states readings and developments this confession stakes itself on. Both carry weight. Only the first claims the undivided Church's own voice. Where an entry rests on a development, its audit is given in place, and by section 3's own rule such developments are held as received in seed while their developed form awaits the whole Body.

### **Held as the consensus of the undivided Church**

#### **The deposit is first-millennial.**

The Creed, the seven Councils, and the Christological and Trinitarian dogma constitute the faith, whole and sufficient. What the undivided Church confessed is confessed here.

#### **The Church is one, at once visible and invisible.**

There is no salvation outside her, but she is the universal Body of Christ, not a single jurisdiction. One is joined to her by faith and baptism, and God is not bound by His own sacraments. That last clause is the first-millennial seed. What has been built on it is a development, entered below among the staked things.

#### **The sacraments are real.**

Baptism regenerates. The Eucharist is the Body and Blood, the patristic real presence shared with the East, with confessional Lutherans, and with high Anglicans. The Church came to number the sacraments seven, and that numbering is received and used here, with its status as deposit or later articulation recorded honestly in the closing list.

#### **The moral consensus of the Fathers, and its limits.**

Here the criterion is tested, not merely invoked, and it is applied even where it complicates the claim. The sanctity of life and of the unborn (the *Didache*, and the Fathers with one voice), the reservation

of the marriage bed to man and woman, and the reservation of priestly and episcopal ordination to men are held everywhere and always by the undivided Church, East and West, with a unanimity firmer than many a doctrine. The ancient Church knew deaconesses, and canon 19 of Nicaea and canon 15 of Chalcedon regulate them, so the claim concerns the priesthood and the episcopate, not every ministry. The slavery precedent of section 5 will be quoted against this consensus, that universal practice with toleration does not bind. Slavery was a worldly institution the Church lived inside, accommodation in the sense of section 5, and no rite of the Church enacted it. The reservation of orders is enacted in the Church's own constitutive act, ordination itself, legislated in her canons, and the deaconess canons just cited show the boundary was drawn deliberately rather than inherited from the surrounding world. A practice the Church tolerated and a boundary the Church kept in her own sacrament are not the same kind of fact. And no second witness can move this question in either direction, for by the restriction of section 5 the natural law speaks of nature and not of church office. The clause that refused Rome the primacy by that channel refuses the innovator ordination by it. One Roman act is caught here by the scope rule of section 3. The answer of 1995 that declared *Ordinatio Sacerdotalis* to be definitively held claims a finality only the whole can complete, so the content stands here on first-millennium consensus while the unilateral claim to have settled it awaits the whole Body. The system works the same way on a conclusion we hold as on those we decline.

On marriage the honest finding is narrower. The prohibition of divorce is the Lord's own word, and the Fathers held it with severity, and that much is consensus. But the developed Western doctrine of the bond, an ontological tie that no pastoral economy can touch, was not received in the East, which from St. Basil's canons onward treated remarriage after divorce penitentially, by *oikonomia*, and imperial law provided for it throughout. Whether the Western bond or the Eastern economy is the true drawing out of the Lord's word is therefore worked in appendix B, where the rules jam honestly, and carried to the closing list rather than claimed as consensus. Where the consensus is real it is the Fathers' own, not modern partisanship read back into them, and the rule that declines Vatican I keeps it. Their consensus is no simple mirror of present politics. It condemned usury, largely tolerated slavery, and read

the death penalty otherwise than the current Catechism. The criterion binds where the Fathers were of one mind, and there its conservatism is theirs, not ours. On usury the Fathers were of one mind, arguably more so than on some matters kept here, and the later unwinding of that consensus is tried by the retraction rule of section 5 and carried to the closing list. So the recovery of unity is not the dissolution of the moral law, nor the healing of schism the flattening of the liturgy. The ancient rites and the hard sayings are kept together.

## **Staked by this confession**

### **Indefectibility belongs to the whole Church, not to one see.**

A council or a pope may err. The total Body, across time, does not wholly fail. Its minimal content is this, that the creedal core can never be lost from the whole Body, so the claim is falsifiable in principle, and had the whole Body ever ceased to confess Nicaea the promise would have failed. This is the decisive point, and it is a reading of the promise, not an undivided consensus, for Rome locates indefectibility in herself and the East locates it in Orthodoxy. It is staked here and argued in section 4.

### **Primacy, yes. Supremacy, no.**

Rome is first in honor and in vigilance, the see of Sts. Peter and Paul, decisive against Nestorius and Eutyches, author of the Tome that shaped Chalcedon, and the steadfast anchor of Nicaea in the West when the East wavered. But she is a brother among the patriarchs, not their sovereign. This too is a judgment of the first-millennium evidence, weighed in section 4 against Rome's reading of the same record.

### **Justification and sanctification are distinct but inseparable.**

Justification is God's declaration over those united to Christ. Baptism ordinarily incorporates the believer into His covenant body. Living faith necessarily bears fruit in love, and sanctification, though distinct from justification, is never divided from it. The Reformation's central insight and Trent's sacramental realism prove closer than either party's polemics allowed, as recent popes have acknowledged of Luther on this point. The synthesis is a modern convergence, staked rather than inherited. It binds no one. It is proposed within the space section 4 leaves open, which is all this confession can do with any second-millennium teaching, its own included.



### **The wideness of mercy.**

That those who never reached the font may be joined invisibly to the Body is held as hope rather than dogma, and the development is audited at the end of this section.

### **Ecumenism is a good, not a betrayal.**

The Second Vatican Council's opening to other Christians corrected a genuine overreach, and the overreach can be dated, for *Mortalium Animos* in 1928 had forbidden the assemblies on any terms and knew no unity but return. On this the position sides with the Council. It values Vatican II not as a council of ecumenical authority, since no second-millennium Roman council possesses that, but as a genuine *ressourcement*, a recovery of first-millennium ecclesiology. The same audit this section gives the doctrine of mercy at its close is owed here, since ecumenism as a program is likewise a twentieth-century Western development, and the first-millennium record of anathema and rebaptism controversies often runs the other way. The defense is the same in form. The seed is patristic, in St. Basil's economy toward returning schismatics, in St. Augustine's recognition of true baptism among the Donatists, and in the councils' practice of receiving the lapsed and the separated by degrees. The drawing out of that charity toward divided Christians is growth in the same sense. What would not be growth in the same sense, and is not held here, is indifferentism, the claim that the divisions do not matter or that every communion is the Church. The seed is charity toward the separated, not indifference to separation.

### **On this mercy, and its development.**

The expansive doctrine of invincible ignorance and baptism of desire, in the form that softens Florence, is largely a second-millennium and modern Western growth. Trent gestures at the desire for baptism, Pius IX draws it out in 1854 and 1863, and the twentieth century widens it further. The Fathers were on the whole harsher, and St. Augustine, against the Pelagians, harsher still. The defense is St. Vincent's own, growth in the same sense. The principle is first-millennial in seed, that God is not bound by His own sacraments, that the martyr is saved by a baptism of blood, that St. Ambrose could commend the catechumen Valentinian who died unbaptized. Drawing this principle out is development in the same sense, not a change of sense, and by that test it is licit where

Vatican I is not. What is genuinely modern is not the principle but the optimism about how many it reaches, and that is held here as hope, not as dogma, with the Fathers of mercy, St. Isaac the Syrian and St. Gregory of Nyssa, as its witnesses.

### **3. What is declined**

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To hold the preceding honestly, certain claims bound by Rome in the second millennium must be declined. This is a real discontinuity, and it is named as such rather than presented as seamless growth. The entries are Roman because Rome bound most. Where the East bound in parallel, as at Jerusalem in 1672, the same rule cuts, and the Trent entry below and sections 4 and 5 say so.

#### **Vatican I (1870).**

Universal ordinary jurisdiction and papal infallibility, *as defined*, are declined. What disqualifies a definition is not the mere absence of the East at its convening. Constantinople I (381) was an Eastern assembly the West did not attend, yet was received by the whole Body. What disqualifies it is its being bound by one part of the Church against the mind of the other and never received by the whole, which is the case with Vatican I. The primacy is kept. The universal monarchy is not received.

#### **Florence's rigid formula of "no salvation outside" (1442).**

The formula is kept, read at its seed rather than at Florence's rigor, as the audit at the end of section 2 grades it. The plain damnation of one who dies outside Roman obedience is declined as overreach.

#### **Trent (1545 to 1563).**

Trent's doctrinal decrees largely restate the Augustinian and patristic faith, the reality of the sacraments and the true presence, and are held gladly. Its canons, however, were framed against particular sixteenth-century propositions, some of them polemical extremes rather than the settled teaching of the Reformation confessions. The 1999 Joint Declaration on Justification, signed by Rome and the Lutheran World Federation, judged that on the basic truths of justification many of those condemnations no longer strike the Lutheran position as there clarified. Confessional bodies such as the Missouri Synod rejected it, holding that

Trent's canons still bind against genuine Lutheran teaching. What is declined is therefore, in the main, not Trent's doctrine but the finality of its anathemas.

In the main, and the exceptions must be named, for in at least three places Trent defined beyond the undivided faith, and those definitions stand as acts not yet received, their questions held open. Session IV closed the canon of Scripture with the disputed books under anathema, and the closing list leaves the canon's edges open. Session VII defined the sacraments as exactly seven, and that count is likewise held open. And the boldest grading here concerns justification, worked in full in appendix B, with the verdict alone standing here. The first millennium left the mechanism of justification undefined. Trent's sixth session closed that open field against opponents who confessed the creed. So the canons that guard regeneration are kept gladly, and the elevation of inherent renewal to the sole lawful account is not received, exactly as the parallel elevation of transubstantiation below is not, while the account itself is honored and the question held open. Where Trent restates the undivided faith it is kept gladly. Where it defined beyond that faith, its definitions share the standing of 1854 and 1870, not condemned but not yet received. The Tridentine profession of faith, with its obedience to the Roman Pontiff and the Roman Church as mother and mistress of all churches, is likewise not kept, though it belongs with the papal claims above rather than with the decrees. One mark in Trent's favor is also recorded. Its canon on divorce was deliberately worded to avoid condemning the Greek practice, a restraint toward the East that this confession's openness on the bond continues rather than contradicts.

### **The Eucharist, caught in both lungs.**

On the Eucharist, what is declined is the elevation of one scholastic articulation, transubstantiation in its Aristotelian idiom, into the sole required expression of a change the whole Church already confesses. The real conversion of the elements, *metabole*, is first-millennial and Eastern and is held gladly, without reading the later idiom of substance back into the ancient claim. What is declined is the anathematizing of those who confess that same mystery in other words. The East made the same move at Jerusalem in 1672, confessing the change as *metousiosis* under anathema, and that elevation is declined here on the identical ground. The over-articulation is caught twice, once in each lung.

### **The Marian definitions of 1854 and 1950.**

The Theotokos of the Councils and the ancient feast of the Dormition are honored, and under material reception the two definitions grade differently. The East's Dormition hymnography confesses Mary translated bodily to life, at Jerusalem by the sixth century, across the empire by the decree of Maurice near 600, and at Rome under Sergius I before the seventh century closed, and the definition of 1950 deliberately avoided the one point East and West word differently, whether she died. The witness crosses 451 as well, for the Copts keep to this day a feast of the Assumption of the Virgin's body at the close of her fast. The Gelasian Decree's listing of the *Transitus* among the apocrypha will be cited against this, and the answer is a distinction already in use here. The literary vehicle was rejected, and the liturgical confession grew on its own root. So the content of the Assumption is arguably ripening in the channel, while the act of 1950, a unilateral binding under the gravest censure, stays declined. The Immaculate Conception has no parallel help, for the East's ancestral-sin account does not confess its content. Neither definition is made a test of communion, as the first millennium never made them. The split buys a symmetry worth naming, each communion holding one definition whose content is near received and one claim that fails on the merits, and the ledger is stated in full in the closing list.

### **The acts and words of the present pontificates.**

The record since 2013 is not exempt from the criterion, or this paper would audit only the safely dead. It is graded in full in appendix B. *Fiducia Supplicans* fails against the moral consensus of section 2 and was refused in reception within and beyond the Roman communion. The papal words of 2016 on Luther and of 2026 on war are graded as words and not acts.

### **The *filioque*.**

A Western clause added to a conciliar Creed without a council. It may be theologically confessable, and it entered the Latin creed at Toledo against a live Arian denial of the Son's full divinity, so on content it might even pass the third condition of section 5. It is declined on the ground of form, and the ground must be stated exactly, for procedure alone is not an independent criterion. Constantinople I was itself an assembly of one part, and its amendment of the Creed of 325 was cured by the whole

Body's reception. Procedure therefore raises a presumption against, curable by reception. The filioque's defect was never cured, for the East never received the clause. Material reception might seem to soften this, for St. Maximus's letter to Marinus is first-millennium evidence that the Latin sense could be confessed in the East, so the distinguishing clause is added. The Creed is the unique case where the formula is the object, the one text the whole Body recites verbatim, so material confession of a doctrine cannot cure unilateral alteration of the shared words, which is why the council of 879 to 880 forbade additions rather than adjudicating pneumatology. The filioque is held lightly for the sake of the East.

### **The criterion.**

Councils and Tradition are honored, not weighed by private judgment. To set oneself against the consensus of the Fathers is both foolish and proud. A council's confession is not a second source beside Scripture but the Church's own reception of the one revelation, and it binds when the whole Body receives it. Reception here is material, not merely formal. A council is received when the whole Body comes to confess the faith it defined, whether or not every part accepts the formula, the assembly, or the act. That is a judgment of historical and theological substance, made by fallible readers of the record, of the same kind this confession makes in favor of the Oriental churches, so the same kind must be allowed against us, and section 4 weighs Vatican I under exactly this definition and judges that the East did not materially hold what 1870 defined. One consequence follows at once. The word undivided is imprecise, for the Body tore at Ephesus in 431 and at Chalcedon in 451 before it tore in 1054, and what the first millennium supplies is not an unbroken receiver but a faith the torn parts have proved, on examination, to share. The additions above are declined not by private preference but because they were never so received, bound by one part of the Church against the mind of the other.

The word "declined" must be read precisely. Reception judges in retrospect and cuts both ways, so a definition the whole Body has not received is not thereby condemned but *not yet received*. No act can finish the verdict while the Body is torn. It finishes only as all the torn parts come to confess one way or the other, which division slows but does not bar. The later councils show the positive case, received across open tears on the evidence graded in section 4. The robber council

shows the negative, materially rejected four of four on the grading given in section 4, a completed verdict. Vatican I today faces contrary confession from three of the four ancient communions, with the churches of Scranton confessing against it besides, and assent from one, so it stands not yet received and not yet rejected. To decline Vatican I is thus not to pronounce it false but to decline to hold it as binding on the whole Church while it lacks the reception that alone could make it so. It is a provisional non-assent, offered into the Church's discernment and awaiting the whole Body, not a sentence we are in a position to pass.

The rule's scope is stated as well. It covers every act put forward as final for the whole Church, whatever its grade, a solemn definition, ordinary and universal teaching, or an act declared definitive after the fact, as *Apostolicae Curae* was in the commentary of 1998. A claim of finality for the whole is exactly what only the whole can complete. On where authority rests, see section 4.

### **On "declining," and its cost.**

The word is soft. The reality is not. For a Roman Catholic, which we are, to decline Vatican I or the Marian definitions is to withhold the assent of faith Rome requires to what she defines as *de fide*, in her own law material dissent, and she does not accept it from her own children, as her answer to Zoghby proved. We will not pretend otherwise. We hold this not as a concession Rome grants but as an appeal, over the head of the present Roman self-understanding, to a reception the whole Body has not yet given, and we stand at her altar without claiming she blesses it. Section 8 weighs that posture, named there as defiance rather than evasion, against the separation of those who left.

## **4. Scripture and the living voice**

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The recurring objection to a first-millennial ecclesiology is that a Church which appeals to the undivided consensus has no living organ to settle a new question. Rome answers with a threefold authority, Scripture, Tradition, and a living Magisterium, but makes the Magisterium the final and present court over the other two, competent to define new dogma with binding force. The claim is a powerful one. The objection to it is not that such a voice would be unwelcome, but that, by the reckoning of section 3, it has defined against the received mind of the

first millennium. And the record holds reversals, not one but a class. Vatican II corrected the rigor of Florence's formula of 1442 on those who die outside, as sections 2 and 3 grade the case. *Dignitatis Humanae* taught a civil right to religious liberty that *Quanta Cura* had condemned in nearly the same words, and appendix B sets the texts side by side. The Council's ecumenism entered the assemblies *Mortalium Animos* had forbidden on any terms. Each of these reversed second-millennium overreach and not the deposit, and each was a return, which is why this paper approves them, against the seamless readings that deny the reversal and the traditionalist reading that calls it defection. But the same court has begun to reverse in the other direction. The death penalty teaching of 2018, examined in appendix B, retracts in its stated ground what Scripture and the Church's unbroken acknowledgment affirm, and this paper does not receive it. A court that claims its teaching cannot be reversed, and has reversed it in both directions, cannot be the bedrock it takes itself to be. The reversals toward the deposit are not the scandal. The claim that no reversal happens is, and so is a reversal against the deposit passed off as development of it. The claim also exacts a price this paper does not, for under it each of Rome's honest corrections reads to her own children as a fall, which is how the exits this paper declines were built.

The bedrock is not a court but the living God, who has made His will known in two witnesses. The first is the natural law, written on the conscience and legible to reason (Romans 1–2). The second is divine revelation, Scripture and the apostolic Tradition, which are not two competing sources but one, borne by the Church in the life of the Holy Spirit. Scripture is the supreme and sufficient witness of that one Tradition, the written Word at the heart of the Church's life, not a book set over against the Body that received and recognized it. It is God-breathed, and clear in the things necessary for salvation.

*"All Scripture is breathed out by God and profitable for teaching, for reproof, for correction, and for training in righteousness."*

2 TIMOTHY 3:16

Because it is sufficient and clear in the essentials, the reader is charged to handle it rightly, yet within the Church, not against her.

*"Do your best to present yourself to God as one approved, a worker who has no need to be ashamed, rightly handling the word of truth."*

2 TIMOTHY 2:15

Reason, too, is no enemy of faith but its servant, given that man might seek and find God. But the faith is not guarded by the lone reader, nor by his private reason, nor, against Rome, by a single office set over Scripture and council alike. It is guarded by the whole Church, "the pillar and ground of the truth" (1 Timothy 3:15), indwelt by the Spirit. Scripture, Fathers, and councils are therefore not three competing courts but one Tradition, of which Scripture is the supreme witness and the Church the living bearer.

A council's authority, then, is not self-executing. A council is Ecumenical, and its confession irreformable, when the whole Body receives it. The "robber councils," formally convened yet rejected by the Church, prove that convocation is not enough. By the same measure the seven Councils constitute the faith while the additions of the second millennium are declined. The first were received by the undivided Church. The second bound one part against the mind of the other. (The Council of Constantinople of 879 to 880, held before the schism, attended by Roman legates, and itself forbidding additions to the Creed, is honored as of a piece with the seven and stands with the East against the *filioque*. The number "seven" names the core Rome and the Chalcedonian East counted together, held materially by all four ancient communions in the graded senses given, not a claim that reception ceased by decree.)

So where Scripture, Fathers, councils, and the living churches appear to disagree, the position must be candid about what it offers and what it does not. Two things Rome fuses, it holds apart. The first is the governance of a live dispute. The second is the guarantee that a settlement belongs to the deposit. For governance there is no lack. Scripture and the faith already received, the bishops in council, and Rome's own primacy of initiative order the Church's life now, as they ordered it when St. Athanasius held the faith against an Arian episcopate. What cannot be had in the moment is the guarantee. The certainty that a present definition is irreformable comes only as the whole Body receives it, over time, by the Vincentian canon. This is less than Rome promises, and the position owns it plainly. It is chosen not because hindsight is prefer-



able to certainty, but because, by the reckoning of section 3, the greater certainty Rome offers has in fact produced definitions the whole Body has not received. A guarantee is only as good as its record, and on this reckoning the record contains failures.

So on the essentials necessary for salvation the whole Church already agrees, and that agreement is the creedal core. What she has not defined she is content to leave open, as theological opinion, not dogma. The believer caught in a live controversy is not therefore left with nothing. He holds, as the Fathers held before the councils vindicated them, to Scripture and the faith already received, trusting the promise that Christ's own will know His voice.

*"My sheep hear my voice, and I know them, and they follow me."*

JOHN 10:27

This is the patristic and conciliar structure: one revelation, Scripture its supreme and sufficient witness, the whole Church its bearer through reception, and reason its servant. It asks of the believer an act of faith, that God guides and preserves His Body across time. It accepts, as the cost of declining a present tribunal, that some live questions stay genuinely open until the whole Church has spoken. That is a real limitation, admitted rather than disguised, and the ordinary condition of Christian life besides.

### **On Newman's objection.**

The strongest case against this structure is John Henry Newman's. Doctrine truly develops, and to tell a true development from a corruption calls for a living authority that can judge in the present. That is his argument for Rome. The problem is granted. Reception judges only in retrospect, and cannot, in the moment, do what he asks. But his remedy is answered by its record, joined to the circle owned in this section. His instrument, carried forward, produced the definitions of 1854, 1870, and 1950, which the other ancient communions have never accepted. To call them unreceived developments rather than identified ones already presupposes this confession's criterion, and Newman would say exactly that, for on his account the living act itself identifies the true development. So the reply does not land on his ground. It lands on the shared

record and on the choice of circles this section confesses, and the record now splits the charge into a dilemma. Where the content was already ripening in the channel, as with 1950, the act added nothing the channel was not doing and claimed a finality it could not deliver, and this stands on Rome's own record, for Pius XII polled the world's episcopate in 1946 and the bull grounds the definition in the Church's standing and near-unanimous faith, so by its own testimony the content preceded the act and the act's sole addition was the claim of unilateral finality, the precise item in dispute. Where it was not, as with 1854 and 1870, the act produced dogma the other ancient communions have never accepted. Either horn indicts the mechanism, redundant where the Body was confessing and productive of the unreceived where it was not. The choice is exact. His certainty in the present comes at the price of a magisterium that has defined against the first millennium. This retrospective humility comes at the price of no guarantee in the present. We keep his method, that doctrine develops and must be tested, while declining his authority, and we pay the price he named rather than pretend it is not there.

### **The strongest form of the objection.**

Newman's argument has a harder edge that must be met as stated. If reception requires the whole Body, and the Body has been torn since 431 and 451 in the East and since 1054 between Rome and Constantinople, then nothing can be received after the tearing. The deposit is frozen. Worse, a future reunion council could not be authoritative without reception by the whole Body, which seems to require the very reunion it is meant to produce. Two replies are given, and one thing is granted, each under its own head.

### **The receiver in history.**

The appeal to Nicaea settles more than it once seemed to, and the correction runs in this confession's favor now that reception is material. The pre-Nicene Church lacked a prior organ of definition, and it was not even unbroken, for the Novatianist, Melitian, and Donatist tears were already open, yet Nicaea was received across them, Acesius the Novatianist affirming the creed at Nicaea itself while keeping his schism, as Socrates records. The record after Nicaea is stronger still. Ephesus did not postdate the eastern tear so much as consolidate it, yet the church of that tear materially confesses, on the finding of 1994, the one Christ

Ephesus defined. Chalcedon postdates 431 outright and is held by the same communion, and the Orientals' material confession of it stands on first-millennium evidence, exhibited in appendix B. Constantinople II and III and Nicaea II postdate 451, and the agreed statements at Chambésy supply the Orientals' confession of them, wills and energies included. The evidence is then graded. For Nicaea across the Novatianists and for Chalcedon across 451 it is first-millennial and material. For the fifth through the seventh across 451 it is Chambésy, support rather than closure by this paper's own rule, and the Chambésy formula for wills and energies is itself contested among Orthodox critics. The argument against the freeze needs only that confession crosses tears, and the record supplies two crossings on first-millennium evidence, one constitutive, Chalcedon across 451, where the refusing churches are themselves members of the receiver, and one evidential, Nicaea across the Novatianist tear, the grades assigned where the receiver is defined below. The negative case is graded the same way. The Orientals honor Dioscorus, who presided at the robber council, and never accepted the framing, so its formal rejection is three against one, the mirror of Vatican I's. The completion is material. Its operative act vindicated Eutyches, formally the orthodox-sounding confession he tendered, materially the doctrine he actually held, and no ancient communion today confesses that doctrine, the Orientals themselves anathematizing Eutychianism, Severus condemning any denial that Christ is consubstantial with us. So Ephesus II stands materially rejected four of four, while the honor paid Dioscorus is a judgment on a person, non-deposit by the discipline rule, that rule's third service. Tears have stood open since 251, so every one of the seven councils was defined while tears stood open, and reception across them is attested wherever it has been checked.

### **The taxonomy of tears.**

The reach of the precedents must be measured rather than assumed, and the measuring needs a distinction, between a tear at its tearing and a divergence arising within a standing tear. At their tearing the great tears were disciplinary, as in 251, or verbal, as in 431 and 451 on this paper's findings, and 1054 itself turned on rite, on the formula of the filioque, whose content is held confessable here, and on personal excommunications lifted in 1965. The channel demonstrably crosses tears of both kinds. The substantive divergences the record now contains

arose within standing tears rather than causing them, and they are exactly the acts this paper declines, Vatican I first among them. Whether Vatican I is substantive or verbal is itself the adjudication, substantive on this paper's weighing below, verbal on Rome's reading of Sardica and Hormisdas, the same kind of judgment that graded Chalcedon verbal, made in the other direction. That is why Vatican I is the hard case. It is the first candidate substantive divergence ever put to the channel, so no precedent promises its speed or its outcome. The faith survived every tear at its tearing, which is the indefectibility staked in section 2 showing up in the historical record rather than resting on promise. Reception across tears is not a hoped-for mechanism. It is the attested history of the conciliar core. What the divided state lacks is therefore not a receiver, for the receiver exists in the deposit-bearing communions and was never unbroken. What it lacks is any one communion's power to bind the others.

### **Reunion without new definition.**

The reunion circularity is real and is not dissolved by ordering alone. It is not true that reconciliation requires no dogmatic act, and this confession's own evidence shows as much, for Rome answered the Zoghby profession by requiring the developed doctrine of the primacy in full. On present terms the price of communion is dogmatic. What reunion requires is therefore not a new definition but a mutual act of reception, each communion acknowledging that its post-schism definitions, however true it holds them, have not been received by the whole and will not be imposed on the whole as conditions of communion. That is an act of reception, not of definition, and reception is the one power this account has never suspended. Nor is reception preceding communion a novelty proposed here. It is what the Orientals have done for fifteen centuries, confessing the faith of councils they never attended across a communion still unhealed. Whether Rome can perform such an act and remain what Vatican I says she is remains the open question, and it is a reason reunion may be the work of centuries. The Nicaea analogy also fails at a second joint. The churches before Nicaea shared communion and had not bound contradictory dogmas under anathema. The present churches have, so the path is harder than any precedent.

### **The grant, at its true size.**

Binding by act alone never existed in the conciliar age. Tears have stood open since 251, so no council ever bound by its act. Every council's authority completed by reception across whatever tears then stood, and what division changes is the speed and legibility of the verdict, not its mechanism. What was lost in 1054 was therefore not a power the Church once had but the concord that once made reception swift. What blocks Vatican I is not the tear. It is the standing non-confession of the other deposit-bearing communions. This remains a real grant, for a slow channel binds nothing on demand and no living office can hurry it, and it is held deliberately rather than escaped by identifying the whole with one part, which is the only escape on offer. Life, worship, holiness, and teaching continue. Definition ripens where it is confessed and waits where it is not.

### **On the criterion, and what it proves.**

The Vincentian rule can seem to prove too much. As strict arithmetic, believed by every baptized soul, everywhere, at every moment, it would unmake the Trinity itself, for the fourth century, in St. Jerome's flourish, groaned to find itself Arian, and it would leave nothing standing. But St. Vincent, who watched that century, never meant arithmetic. His is a rule of moral consensus over time, joined to legitimate growth, since doctrine develops, he wrote, but *in the same sense*. Two refinements answer the hard cases, and each carries its own head.

### **Reception is of the faith, not the formula.**

The Oriental Orthodox, who refused Chalcedon's "two natures," did so fearing it divided Christ, not to confess another Christ. The first-millennium evidence of what they materially confessed, read in St. Cyril and in Severus and exhibited in appendix B, gives strong reason to judge the quarrel one of words. The modern dialogues, from the Roman-Coptic declaration of 1973 to the Eastern-Oriental agreements at Chambésy, concur, but those are present judgments, unreceived by the whole Body and not yet issuing in restored communion. They corroborate, they do not close, for a present agreement can no more settle the matter than a present magisterium can. So the weight rests where this confession always puts it, on the first-millennium evidence, and the Oriental place in Tier I is held on the same terms as all else here, provisionally and in

hope, not as a verdict already in.

### **The three receptions, and their obligations.**

The same finding exists for the older wound. The Common Christological Declaration of 1994 judged that the Church of the East, whose separation was consolidated over decades, autocephalous by 424 and settled in its christology by the synod of 486, confesses the one Christ that Ephesus defined, a quarrel of words there as at Chalcedon. The fifth council makes it three, for 553 anathematizes two hypostases while the East Syriac idiom confesses two qnome in one parsopa, so the Assyrians' reception of 553 rests on the same judgment that words are not things, that qnoma is not hypostasis in the conciliar sense, which is the judgment that carries the Orientals' reception of Chalcedon made in the mirror direction. The three cases stand or fall together, and this confession takes them together, so the Assyrians stand in the first tier on the same provisional terms, and the count of formal receivers of the seven councils thins again. That is no embarrassment once reception is defined materially, as the criterion note of section 3 defines it, for what holds the councils is not the unanimity of assemblies but the shared confession of the torn parts.

Two obligations follow and are met. The fifth council condemned by name doctors the Church of the East venerates, Theodore above all, with Diodore and Nestorius beside him, so material reception of 553 cannot mean confessing its censures. The position taken is that personal anathemas are acts of discipline, not deposit. The dogmatic content binds and the judgments on the dead do not, and the same distinction governs our own use of the sixth council, whose condemnation of Honorius is retained as historical evidence of how papal teaching was then regarded, not as deposit-content. The seventh council presses harder, for Nicaea II defines a faith, that the image of the incarnate Lord is lawful and its honor passes to the prototype, and commands a practice, veneration, while Assyrian use is largely aniconic, not condemning icons but not venerating them. So the minimum of material reception is stated. For definitions of faith the strong sense is required, active confession of the content, and the christological councils meet it. Where a council commands a practice grounded in the faith, the weaker sense suffices, non-contradiction joined to confession of the faith from which the practice flows, and the Assyrian case at the seventh council meets only that,

though not barely, for their veneration of the cross, which Nicaea II itself names among the venerable objects, already enacts the honor that passes to the prototype, and the *Marganitha* of Abdisho ranks the Sign of the Cross among the Church of the East's own seven mysteries, a doctrinal grading of the material sign as grace-bearing, whose count of seven, drawn up otherwise than Trent's, also corroborates that the number is an edge. Their first-tier place is held on the strong sense for the faith and the weak sense for the practice, and the difference is recorded. Rome's own discipline supplies corroboration in deed, the guidelines of 2001 on the Anaphora of Addai and Mari, an instrument-doubt raised and healed by Rome herself, the mechanics left to section 6 where the healed-doubt rule lives, and the healing is one Tier II should remember. That is why they stand in Tier I, the formula disputed and the faith, on the evidence, received.

### **The Roman evidence weighed.**

Is Vatican I not the same, a formula of a primacy the East materially granted for a millennium? Rome says so, and the parallel must be answered with the evidence. The strongest Roman evidence is real. The canons of Sardica (343) provided appeal to the bishop of Rome. The Formula of Hormisdas (519), signed by Eastern bishops to end the Acacian schism, confessed that the apostolic see had kept the faith unstained, though when the East signed, the patriarch John attached his rider identifying the sees of old and new Rome, so the signature arrived glossed, the appeal-reading present in the record itself. Chalcedon acclaimed Leo's Tome with the cry that St. Peter had spoken through Leo. St. Maximus the Confessor, an Eastern saint, wrote of the Roman see in terms Rome still quotes. On the same record, however, stand the other facts. Sardica's appeal is exactly that, an appeal, a court of review for cases brought to it, not ordinary government of every see. Chalcedon acclaimed the Tome after examining it against St. Cyril, and the same council's twenty-eighth canon ranked Constantinople's privileges on political, not Petrine, grounds, over Leo's protest. The sixth Ecumenical Council condemned Pope Honorius as a heretic, and the same council must be read whole. It received Agatho's letter professing that Rome's faith had never failed, and Leo II confirmed the condemnation while glossing the fault as negligence that let the pure faith be stained. Both halves are weighed here. A see whose letter could anchor a council,

and whose bishop that same council could condemn, is exactly what this paper concludes, weighty, appealable, and not irreformable of itself. So the record, read whole, shows a true primacy of appeal, of witness, and of honor, which this confession keeps, and it does not show ordinary immediate jurisdiction over every see or definitions infallible apart from reception, which Vatican I defines. Under the test stated above, the case then differs from Chalcedon at the first and third conditions. The non-Chalcedonians materially held what Chalcedon defined, one Christ, God and man, so the quarrel was of words. The developed papal claims are of a different kind from the primacy the East granted, and they bind where the first millennium left free. Rome reads the same record as seed and development. That reading is judged here to fail the stated test. The disagreement remains real. It is a weighing of evidence, not a stipulation. The agreed statements of Ravenna and Chieti, Rome's own delegates signing, read the first millennium the same way, primacy exercised within synodality and not over it, and they are cited here as evidence, not as ornament. Moscow was absent from Ravenna and present at Chieti, so the two are cited as a pair, and the finding does not hang on the session a synod missed.

### **The ex sese clause, confronted.**

One clause of Pastor Aeternus meets this paper head on and must be quoted, not paraphrased. The fourth chapter defines that the Roman Pontiff's definitions are irreformable of themselves, and not from the consent of the Church, *ex sese, non autem ex consensu Ecclesiae*, and it anathematizes whoever says otherwise. This paper says otherwise on every page. Its whole architecture is a consent-of-the-Church account of irreformability, so the collision is total, and it is seen, not missed. And the two postures must be told apart, for the retort will be that non-assent and denial cannot both be held. They are held at two objects. Toward the content of the definitions the paper's posture is the provisional non-assent of section 3. Toward the ex sese mechanism it is denial, for a consent-of-the-Church account is not agnostic about a clause that says consent is nothing. That clause is why Rome answered Zoghby as she did, and it is the exact content of the question this paper keeps asking, whether Rome can perform the mutual act and remain what Vatican I says she is. Two things are said about it. First, the clause is itself an act put forward as final for the whole Church, so it falls under the same rule



as the definition it protects, not yet received by the other deposit-bearing communions, and a clause cannot certify itself against the very test its certification is meant to settle. Second, the anathema falls on us by its terms, and we do not pretend otherwise. We stand under it as under the rest, appealing to a reception the clause itself denies is needed, which is the whole disagreement in one sentence.

### **The canon as the model.**

The canon of Scripture is not a counterexample to reception but its very model. There is a firm core received everywhere and always, the Gospels, Paul, the undisputed epistles, and a fringe long disputed, Revelation in the East, the antilegomena, the deuterocanon, where the Church tolerated variation for centuries, and East, West, and the Reformation differ still. No supreme tribunal closed the canon in the undivided age. The Church received it core first and edges slowly, exactly as this criterion describes. The criterion yields not a seamless unanimity but a firm center and an honest margin, which is what the Church has always in fact had.

### **On the circle both sides stand in.**

One honesty remains. To say Vatican I was “never received by the whole Body” presupposes that the whole Body includes the East, which is the very point in dispute. Rome answers that since 1054 the Body, in the sense that counts, is those in communion with her, and by that reckoning the West received Vatican I, and the West is the Church. That is circular. But so, in the other direction, is this confession, which fixes “the whole Body” as the communions of the undivided Church and reads the verdict off that. No criterion settles who the Church is without already assuming an answer. The question is prior to every test. The same cut runs the other way. The East does not grant that reception ceased in 1054. It holds that reception continued within the Orthodox communion, as at the Hesychast councils of 1341 to 1351, so that its own later dogma binds. To fix the reference at the undivided first millennium is therefore to choose a cutoff the East contests as much as Rome contests the inclusion of the East. This confession does not claim to have escaped the circle, only to stand in what it judges the more credible place, and the judgment must be argued, not pictured. Rome’s rule, that the living Body identifies its own past, cannot arbitrate here, for there are two

living bodies, three with the Orientals, and each can apply that rule only to itself. It is self-certifying wherever it is used. The first millennium is preferred not because the acorn judges the oak but because, when two oaks each claim to be the one tree, the only evidence not owned by either party is the trunk they share. What both communions jointly acknowledge is ancestry, not jurisdiction, and a party may cite precedent without conceding that precedent overrules its present magisterium. The first millennium is not a court that binds Rome against her will. It is the least-owned ground available, and Rome herself pleads on it, from Sardica and Hormisdas, whenever it serves her. Nor is first-millennium silence treated as dispositive, as though what was not yet said was thereby denied. The case against the developed primacy rests on counter-testimony, canon 28, the condemnation of Honorius, the appeals that remained appeals, not on silence read as refusal.

### **The imbalance explained.**

One imbalance remains to be explained. The tally of declinations runs heavily against Rome, and an unsympathetic reader will say the criterion was built by Roman Catholics to produce it. The imbalance reflects the history of definition, not a tilt in the rule. Rome defined more, harder, and at a higher grade of authority after the division, so Rome presents more definitions to be weighed. The East also defined and bound, Jerusalem in 1672, the rebaptism decree of 1755, the encyclical of 1848, the condemnation of phyletism in 1872, all graded in the appendix, and where the East defined the rule cuts the same way, those acts standing unreceived by the whole. Orthodoxy's claim to be, alone, the whole Church, with reception continuing in her and her later councils binding, is declined here exactly as Vatican I is, and that claim is as dear to the East as the primacy is to Rome. The confession denies both communions the same thing, the identification of the whole with a part. The closer answer to the tally is the symmetry stated in the closing list.

### **The Orthodox claim on its own terms.**

Fairness requires that the Eastern claim be met as itself and not as Rome's mirror, for it is not structurally a mirror. It rests on no defining organ and no stack of gradable acts. It rests on an identity claim carried by eucharistic ecclesiology, that where the Eucharist is rightly celebrated the Church is wholly present, and by the Cyprianic account of the boundary,

that outside the one visible communion there are no sacraments to speak of. Both are met here on their own ground. Eucharistic ecclesiology, taken seriously, tells against the exclusivist conclusion rather than for it. If each local church celebrating the one Eucharist is wholly the Church, then the Roman churches, whose orders and eucharist the East predominantly does not deny in practice, section 6 stating the divided remainder, are the Church wherever they stand at the altar, and Afanasiev, the father of that recovery, drew exactly this conclusion about Rome himself. The exclusivist reading therefore hangs on the Cyprianic boundary alone.

And the Cyprianic boundary, in its strict form, was weighed by the undivided Church and declined. St. Stephen of Rome resisted it, Arles and Nicaea received Novatianist baptism without repetition, St. Basil graded rather than nullified, Trullo canon 95 codified reception by degrees, and St. Augustine against the Donatists made the shared judgment articulate. The rigorist counter-reading, that economy fills an empty form and so presupposes the strict boundary rather than belying it, is met by the canons themselves. St. Basil's grading and Trullo's degrees are unintelligible if every outside rite is equally null, and Nicaea's own canon 19, ordering Paulianist rebaptism while canon 8 received Novatianists without it, shows the Church discriminating among rites, which is exactly what wholesale nullity forbids. What the undivided Church declined was the nullification of all, not discrimination among any. The East's own economy toward converts belies the strict boundary to this day, the rigorism of 1755 standing as the innovation rather than the rule, and the very synod of 1484 that annulled the Florentine union received Latin converts by chrismation rather than rebaptism, the act of repudiation itself corroborating that the strict boundary was never the rule. So the Orthodox identity claim, on the undivided Church's own reckoning, rests on a tradition the whole Body examined and did not receive in the form the claim requires. That is a weighing, made by the same fallible instrument as every other in this paper, and it is submitted the same way. But it is a weighing on the merits and from the East's own sources, not a symmetry asserted from outside.

### **Who counts as the receiver.**

One term must not be left undefined. When this confession says the whole Body receives, it means the communions that have preserved the episcopal and conciliar structure through which reception has always

been rendered, the four ancient communions of the first tier of section 6. One ambiguity inside that tier is settled here, where the organ is defined, lest sections 6 and 7 be read against this one. The churches of Scranton hold the first tier by standing, five marks for five, and the altar counsel of section 6 treats them so. But a body that exists by leaving stands outside the organ, for the receiver survives the loss of a sect, the differentia the Novatianist grading below confirms. Its confession weighs as witness, which is how the tally of section 3 counts it, three of four ancient communions with Scranton confessing against Vatican I besides, and its part in the mutual act is to be received back, which is the part section 7 gives it. Standing at the altar and seat in the organ are distinct, and the tier grades the first.

The baptized outside that structure are not outside the Body. Their sense of the faith belongs to the *sensus fidelium* and weighs as witness. But reception of dogma is an act of churches gathered in their bishops, as it was at every council this confession honors, so the organ is episcopal even while the witness is universal. This grades the present majority of the world's Christians as witnesses rather than judges, and that cost is accepted. A definition of the receiver that required no cost would settle nothing.

And the charge preempted for the rules is owed here too, that the roster is adjudicated case by case, Utrecht excluded by the moral test, Scranton admitted by standing, the Assyrians retained by a weak sense framed for the case it decides, while Nicaea II's own *horos* anathematizes non-venerators, so non-contradiction sits below the council's own demand. The roster is a set of weighings, argued in the open and revisable in the channel it describes, not deductions from the marks alone. The Novatianist crossing is likewise graded, evidential and not constitutive. It corroborates that reception crosses tears. It does not claim Nicaea waited on Novatian's heirs, and if Rome asks why Nicaea could bind without them while Vatican I cannot bind without the East, the answer is the circle already owned, that who counts is prior to every test, weighed here at the tears' own weight, a rigorist discipline on one side, the deposit-bearing communions of the East on the other. And the weighing has a differentia, not only a circle. Novatian's communion was a rigorist party broken from within particular churches, and the structure it left remained otherwise whole. The East after 1054 is not that. It is the

greater part of the ancient patriarchal order itself, four of the five old sees against one, and on Rome's own older counting of the three Petrine sees, two of the three, whose orders and sacraments Rome's own law confesses. The receiver survives the loss of a sect. It cannot be identified with one see against the rest of the structure through which reception has always been rendered.

Two consequences are owned. Tier II's case waits before an organ whose composition its own resolution would change, as courts determine their own jurisdiction. And the moral condition of section 6 now helps constitute the judge rather than merely sorting altars, so Utrecht stands excluded from the receiver by a test the receiver would ordinarily adjudicate. Both are costs of defining the organ at all.

Last, the organ and the evidence are harmonized, for the material verdicts of this paper are read off doctors, liturgies, and lived confession while the organ is episcopal. The two meet in this, that bishops render reception as presiders over a confessing communion whose lived faith constitutes what they preside over, so the witness is the people's and the act is the bishops', as at every council named here.

## **5. The rules of development**

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The rules that govern development are gathered here and stated flatly. Their applications, mercy, usury, slavery, the death penalty, and the disputed definitions of both millennia, are argued where they arise. Three of the rules were forced by hard cases, the retraction rule by usury, the second witness by slavery, and the rule of accommodation and characterization by the death penalty, and a critic will say they were tuned to their outputs. The answer is that this is how rules are found, in law and in casuistry alike. The question is not what occasioned a rule but whether, once stated, it generalizes and can be turned against ourselves. Both demands are met, in this section and in appendix B. They are canons of argument, not mechanical tests. Stated honestly, the apparatus reduces to the first condition, reception, and the historical evidence, and it is offered in that spirit, as a way of arguing that relieves no one of judgment.

### **The test of expansion.**

The phrase “in the same sense” cannot be left as a label, or it reduces to keeping the developments one likes. As used here it has three conditions, and all three must hold. First, **the seed must be of the same kind as the development, not merely on the same subject.** The martyr’s baptism of blood is already salvation without water, so the baptism of desire widens its scope without changing its kind. A primacy of appeal, which judges cases brought to it, and ordinary immediate jurisdiction, which governs every see directly, differ in kind, not in degree. Rome denies exactly this. The first condition is not a mechanism but a judgment of the historical evidence, and in the papal case it is this condition, argued from the record set out above, that carries the case.

Second, **the seed must be legible in both East and West.** This condition is evidentiary, not adjudicative. It is close to a restatement of *quod ubique*, and in an East and West dispute it reports the outcome rather than deciding it, a circularity of a piece with the circle named in section 4.

Third, **the development must not bind where the seed left free, unless the binding is needed to keep the standing confession sayable.**

The clause must be put carefully, for a looser version fails. It is not enough that a definition answered a live denial. The Immaculate Conception was contested for centuries before 1854, and Gallican and conciliarist denials of papal authority were live before 1870, so a bare live-denial test would license both definitions.

The question is what fell with the denial. Arius’s teaching made the Church’s standing worship of Christ unsayable. Nestorius refused Theotokos, a title the Church already prayed in her liturgies. In each case the standing confession itself fell with the denial, and the definition guarded it. By contrast, Aquinas denied the Immaculate Conception as later defined while confessing everything the Church prayed, and was canonized doing so. The Gallicans held the whole Creed and the first-millennium primacy. No one at all was denying the Assumption in 1950. Those definitions bound new content against opponents who held the old content, which is the reverse of Ephesus, where the opponent could not say the old content.

The hardest internal case is the sixth Council, and it must be worked through rather than assumed. Monothelitism touched no liturgical for-

mula directly, and the dyothelite case was built from Scripture, Gethsemane above all. But the standing confession includes what the Church had already defined and received, and Chalcedon had confessed Christ perfect in manhood and consubstantial with us. A manhood without its own will is neither perfect nor consubstantial, and what is not assumed is not healed. So the received confession itself fell with the denial, and the definition of 681 guarded it. The condition holds there without stretching, and no parallel showing exists for 1870, for no received confession fell with the Gallican denial.

### **Florence, the demonstration.**

“Received confession” leans on reception, so the third condition is not an independent check. Florence defined a primacy near Vatican I’s, and the West received it. It is excluded because the East did not, and the manner of that exclusion is the record’s clearest lesson in the difference between act and reception. The Eastern delegates signed at the council, Mark of Ephesus refusing. The union was refused at home, Isidore deposed in Moscow upon proclaiming it, and the Synod of Constantinople in 1484 formally annulled the decree. And the decree had itself sought what it failed to keep, framed on Greek consent and signed by the Emperor and his bishops, so even Rome’s maximal act asked for the East’s reception. A formal act stood and material reception never came, this paper’s whole distinction demonstrated on Rome’s strongest precedent, and 1484 is the standing condemnation renewed rather than lapsed of section 7’s own falsifiability language. The three conditions are one argument stated in three places, and they inherit the circle section 4 owns.

The cost of this clause is admitted. To ask what falls with a denial is still to judge the coherence of the deposit, Rome judges it otherwise, and no living organ adjudicates between the judgments. To allow such binding at all reopens Newman’s question. To refuse it unmakes Ephesus. This confession allows it, restricted as above, offers its application as a weighing into the Church’s reception rather than a verdict above it, and accepts that if the restriction fails, the choice collapses into Newman or the loss of the seven Councils. The conditions organize the argument. They do not replace it. Section 2 and the closing list record where they cut against us.

### **The rule of retraction.**

The three conditions handle expansion, a seed drawn out, and have no provision for the opposite case, where a unanimous teaching was retired. The rule for that case is this. A teaching may be retired without breaking the criterion only where the referent changed and the principle did not. Usury is the candidate case. The principle, that the needy must not be exploited by lending, stands unmoved. What changed is what money is and does, from barren medium to productive capital, so that lending at interest is arguably no longer the act the Fathers condemned. Whether that argument succeeds is contested, and the closing list keeps it open, but this is the tool by which it must be tried, and the same tool tries the death penalty in appendix B. The rule is dangerous and must be watched. It must be shown, not assumed, that the referent changed rather than the fashion. The discipline of the showing is given content. The change must lie in the demonstrable nature of the object itself. It must be establishable independently of the moral conclusion sought. And the burden rests wholly on the one who retires the teaching, with doubt resolved in the teaching's favor.

### **The second witness.**

Section 4 names two witnesses, natural law and revelation, and the three conditions test only the second. Slavery forces the point. Tested by the three conditions, the modern absolute condemnation fails them. The patristic consensus tolerated the institution, a lone voice in St. Gregory of Nyssa condemned it outright, and the condemnation binds where the Fathers left free, under no live denial. If the test were the whole rule, the condemnation of slavery would be an unreceived development of the kind this confession declines, which is absurd, and the absurdity shows the test is not the whole rule. The resolution is that the natural law is a real second witness, not an ornament. Where revelation plants the seed, as in St. Paul, neither slave nor free, and reason's reading of created nature matures, a moral development may bind on the joint testimony of both witnesses, even where patristic practice lagged behind. The guard is strict, and it is what keeps this rule from dissolving the morals of section 2. The second witness can bind what revelation left unbound. It cannot unbind what revelation binds. Slavery was regulated in Scripture and nowhere commanded or blessed as a good, so the two witnesses could converge against it. The moral law of section 2 is commanded,



so no reading of nature can overturn it. The witness is also restricted by its object, and the restriction must be stated, or Rome may claim the same channel and say the developed primacy is disclosed rather than defined. The natural law testifies to what is by nature, to the goods and ends legible in created things. Church polity is not by nature but by institution. No reading of human nature yields the jurisdiction of one see, and fittingness arguments, which reason can supply, disclose what would be congruous, not what is so. The second witness can therefore carry a moral development, where nature is the object, and cannot carry an institutional one, where only revelation and its history speak. Slavery lay within its jurisdiction. The primacy does not. Two limits are noted. Rome does not in fact argue the primacy from nature but from the Petrine texts, so this restriction closes a side door, not her front one. And marriage straddles the line, a natural reality carrying an instituted sacrament, which is one reason the bond question of section 2 stands unresolved rather than settled by this rule.

### **On reason and the natural law.**

The appeal to reason above is no concession to rationalism but an inheritance. That a moral order is written into creation and legible to the conscience is biblical and patristic before it is scholastic, in the Gentiles who “by nature do what the law requires” (Romans 2:14–15) and in the Logos whose seeds the Fathers found scattered through all things. In this the Aristotelian and Thomist tradition is honored as a principal instrument, a discipline of attention to what things are and to the shape of human flourishing, and the ground on which this confession’s morals rest, not arbitrary command but the grain of a created nature. Yet reason here is a servant, not a master. It is a way of knowing God, not a means of closing every question, and not a single system to be raised into dogma. Rightly followed, it ends where the Eastern Fathers said it ends, in the incomprehensibility of God and the *via negativa*. Aquinas himself, near the end of his life, set down his pen and called all he had written straw.

### **Accommodation and characterization.**

A further rule emerged in the death penalty case of appendix B and is stated here as a rule, since that is what it is. An apostolic imperative that instructs the faithful how to live within an institution does not bind the institution’s standing before God. A text that theologically characterizes

an office or an order does bind, and binds precisely what it characterizes and no more. Ephesians 6 accommodates slavery and binds nothing about its standing. Romans 13 characterizes the magistrate as God's servant and binds the office of the sword. Ephesians 5 characterizes marriage in Christ and binds, and reinforces section 2. The rule must then be tested at once on the hardest text for this confession, Matthew 16. There the Lord characterizes St. Peter, you are Peter, on this rock, I will give you the keys, which is no accommodation, so it binds. But it binds what it characterizes, the primacy of St. Peter, and not the further claim that this primacy is ordinary and immediate jurisdiction over every see. That extension is the disputed development, and it goes to the first condition of the test, where it fails on the record already set out, the East holding a primacy of appeal and of witness and not of universal government. So the rule reaches Matthew 16 and does not deliver Vatican I. The rest of the Petrine dossier reads the same way. Luke 22:32, the very text the fourth chapter of Pastor Aeternus cites for infallibility, characterizes an office of confirming the brethren, a ministry of strengthening that the record of appeals shows exercised and honored, and it binds that, so the reply meets Rome's actual citation on its own text. John 21 restores the denier to the pastorate in the shepherd-language every bishop bears, as St. Peter himself applies it to all the elders. Each text binds what it characterizes, and none of the three characterizes ordinary jurisdiction over every see. The rule is suspected by this preamble's own test, for it was forced by the case it decides. But it does cut against comfort where it is applied honestly. First Corinthians 11 grounds the veiling of women in the order of creation, which is characterization and by this rule binds, yet no communion now keeps it. It is saved only by the retraction rule, that the referent changed, a showing sketched in appendix B. That argument bears the burden usury bears, and if it cannot be made good, the practice binds, and we accept that consequence rather than soften the rule. So the rule does not cut one way only. It binds the sword, reaches the keys without yielding the monarchy, and leaves the veil resting on a retraction argument that must be made good.

### **How the rules interact.**

Two collisions must be named, or the rules undo each other. First, usury. Scripture binds against usury in the letter, in Exodus 22, Leviticus

25, Deuteronomy 23, Psalm 15, Ezekiel 18, and Luke 6:35, and the guard just stated says the second witness cannot unbind what revelation binds. The retraction rule can therefore open the case only one way, by showing that the referent changed so completely that the scriptural prohibition no longer reaches the modern act, in which case revelation does not bind the act in question at all. That move must be argued and not assumed, and its availability is what makes the guard softer than it looks, for if a binding can be dissolved by redescribing the act, the guard protecting section 2 is only as strong as the discipline of the redescription. The burden lies wholly on the redescription, and where it remains in doubt the prohibition holds. The closing list keeps usury open on exactly these terms. Second, slavery and the suspension. It is granted in section 4 that no new dogma can bind the whole Church while the Body is divided. Yet the condemnation of slavery binds. The reconciliation is that the two witnesses disclose what was always true rather than define it. The natural law binds by being true, not by being promulgated, so a moral development carried by both witnesses obliges the conscience without any conciliar act. The suspension concerns dogmatic definition, not moral truth. The account therefore possesses a channel of moral development that survives the schism intact, which an account resting all development on a defining organ does not.

## **6. The communions, graded**

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The marks named above, apostolic succession, episcopal government, baptismal regeneration, the real presence, and the Nicene faith, do the sorting. The count of seven sacraments is deliberately not among the sorting marks, since the closing list holds that enumeration lightly, and a criterion held lightly cannot be allowed to do hard sorting work. The five marks sort sacramental standing, and they are not the whole rule. Communion in the moral consensus of section 2 is a second sorting condition, not a mere counsel about where to settle. A body that has departed from the deposit's morals is not carrying the deposit whatever its orders, and does not stand in the first tier. They yield a graded map. Some altars are fully proper to this confession. Some are near neighbors. Some belong to Christians held as brethren without a shared altar.

*Ranked by the five marks above, not by sentiment. To commune is not the same act as to attend.*

## **Tier I. The apostolic Church, communion divided**

Communions. Roman Catholic (Latin Mass, reverent Novus Ordo, the Ordinariate, the Eastern Catholic churches), the Eastern and Oriental Orthodox, the Assyrian Church of the East (on the finding of 1994, held as section 4 explains), and, by standing though not by antiquity, the churches of the Union of Scranton (see the note below).

Standing. The five marks in full. Rome holds the primacy of honor.

Practice. The home altar. Practical communion between the communions of this tier remains divided, since the Orthodox keep a closed altar. Each believer is rooted in one and visits the others in charity. For Scranton, worship freely. Whether to make it home turns on who is asking, as section 8 weighs it.

## **Tier II. Contested orders**

Communions. Anglo-Catholics, Continuing Anglicans, high ACNA.

Standing. The high wing affirms the real presence and baptismal regeneration. The succession itself is the contested mark, on the form and intent of the Edwardine ordinal. Rome denied it (*Apostolicae Curae*, 1896) by an act section 3 declines to treat as final. Constantinople and other Eastern churches recognized the orders in the 1920s, and the recognition later lapsed. Some lines pass through Old-Catholic consecrations. The question stands raised, unresolved, and never received either way.

Practice. Worship with the high and orthodox parishes where no Tier I altar is available. The orders remain contested, by this confession's own account awaiting the judgment of the whole Body. The Anglican patrimony itself already lives inside Tier I, in the Ordinariate.

## **Tier III. Near neighbor**

Communions. Confessional and evangelical-catholic Lutherans (LCMS, high-church).

Standing. The real presence, yes. Baptismal regeneration, yes, affirmed without qualification in the Small Catechism. The historic episcopate is lacking, though what presbyteral succession preserves is a real question, weighed in the companion paper *The bishop and the presbyter* and held open here.

Practice. Fellowship and worship. A valued neighbor, not a full node of the apostolic Church.

## Tier IV. Brethren

Communions. Conservative Presbyterian and Reformed (PCA, OPC), confessional evangelicals.

Standing. No episcopate, no succession. The corporeal real presence is denied, though a true spiritual presence to faith is affirmed (WCF 29). Baptismal regeneration is not denied outright but untied from the act. The grace promised is really exhibited and conferred by the Spirit in God's appointed time (WCF 28.6), and what is denied is *ex opere operato* efficacy at the moment of administration.

Practice. Recognized as Christian brethren and allies, worshiped alongside. Not a branch bearing the apostolic deposit.

### **Not branch theory, and the argument for the difference.**

To place Rome and the Orthodox together in Tier I invites the charge of branch theory, and denial is not an argument, so the differentia must be stated. It must also not be a present verdict, since this confession has just declined to let present agreements settle the Oriental question, and a mutual recognition rendered by divided communions today would be exactly such a verdict. The differentia is therefore historical, a judgment of the evidence of the kind the rest of this confession makes, and it must be put exactly, for the bare facts of the Anglican consecrations are not disputed either. Among the ancient communions the disputes run mainly to grace and boundary rather than to rite, and where rite has been touched, as when the rigorists of 1755 faulted Latin affusion against triple immersion, the objection was never sustained by the whole communion nor made the ground of the schism.

The Anglican case differs in centrality and in career. There the rite itself has been the sustained center of the contest, on the form and intent of the Edwardine ordinal, and the ground must be stated with care, for a loose version fails. It will not do to say only that a doubt, once raised, has never been resolved in a form the whole Body could receive, for that is true of the Athonite doubt about Latin sacraments too, and it would move Rome herself to Tier II. The discriminating ground is the object of the doubt. Where Latin orders are contested, no one claims the Roman rite is malformed. The claim is that grace is absent outside the Church, a doubt about the boundary. Where Anglican orders are contested, the claim is that the rite itself failed, in form or in intent, a doubt about the instrument. The history then narrows the

reach of that doubt without changing its kind. Constantinople declared in 1922 that Anglican orders held the same validity as Roman, Old Catholic, and Armenian orders, and Jerusalem, Cyprus, Alexandria, and Romania followed, a recognition that lapsed later largely over women's ordination, not over the ordinal, and one the Orthodox side has widely read as economy contemplating reception rather than a verdict on the ordinal in itself, a reading acknowledged here. So the rite-doubt was never universal, and it was substantially Rome's. But where it exists it remains a doubt of the instrument kind, raised and not yet healed.

A doubt is healed when the party that raised it withdraws it. Rome raised the Addai and Mari scruple and withdrew it in 2001, so an ancient rite bore an instrument-doubt and bears it no longer. Rome raised *Apostolicae Curae* and maintains it, and Constantinople's recognitions of the 1920s could not heal a doubt that was never Constantinople's to withdraw. The Anglican path therefore runs through the raiser's retraction, and 2001 is the precedent that such retraction happens. This confession does not adopt Rome's act, which section 3 declines to treat as final. It records the standing of the question, which is why the case sits in Tier II as contested rather than in Tier I as inherited. Mutual recognition in present practice corroborates the inheritance, but only unevenly. Rome recognizes Orthodox orders and sacraments consistently. Orthodox practice toward Rome is divided, from the Constantinopolitan decree of 1755 on the rebaptism of Latins to present Athonite and Russian rigorism. The Eastern Orthodox do not yet extend full recognition to the Orientals at all. So recognition is evidence, not the criterion, and where it fails the inheritance still stands.

What is claimed for Tier I is this much and no more. The communions named there carry the undivided Church's orders, sacraments, and faith in unbroken continuity, and their division is a rupture within that inheritance, not a partition into strangers. The claim is weaker than a settled verdict of unity. It is a weighing of the evidence, held, like the Oriental case above, provisionally and in hope. Visible unity is owed, and lacking, and its restoration is the aim.

### **The Union of Scranton.**

The Polish National Catholic Church and the Nordic Catholic Church hold the five marks in full, and the map places them where the marks place them, in Tier I. Their orders descend through Utrecht, and Rome's

own discipline treats their ministers as those from whom Catholics may licitly receive in need under canon 844, a testimony given to no Reformation body. Their Declaration of 2008 reads almost clause for clause as this paper does. The counsel not to be rooted there is not a sixth mark smuggled in where the five gave an unwelcome answer. It is a practice judgment, and it rests on the argument of section 8. The body Scranton left proves why the further condition must be stated. The Union of Utrecht carries the same succession, five marks for five, and it has no place on this map's first tier, for it ordains women and blesses what the undivided Church with one voice did not, abandoning the moral consensus of section 2. The split of 2003 between Utrecht and Scranton is the very kind of question this criterion exists to adjudicate, and it adjudicates it. Orders alone do not carry the deposit.

## **7. The proposal, a mutual act of reception**

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The instrument exists and Zoghby supplied its genre, a synodal profession. What is proposed is that profession made mutual and multi-lateral.

### **The professions.**

Each communion of the first tier, by the synod competent in it, Rome by pope in council, each autocephalous Orthodox church by its holy synod, the Oriental churches and the Church of the East by theirs, professes three things. First, the shared deposit, the faith of the councils graded received in this paper. Second, that its own post-schism definitions are held as its theological patrimony, taught in its schools and prayed in its liturgies, and are not imposed on the other communions as conditions of communion. Third, recognition of the others' baptism, orders, and eucharist, which between Rome and the East is already substantially in force. Between the Eastern Orthodox and the Orientals that recognition is itself the live work of the third profession, as the second is the live work for Rome, so the proposal stages rather than pretends a single signature day.

### **The instruments.**

The enabling instruments are then named, since outcomes without mechanism persuade no one. On the Roman side, the *Professio fidei* required of office-holders, and the canons attached to the definitions,

already bind within the Roman communion alone. The dogmatic claim is another matter, for on Rome's self-understanding the definitions bind all the baptized, which is why the ex sese unit of section 4 exists. So there is no canonical application outside her communion to suspend, and there is a claim upon the whole whose exaction the second profession forecloses, that the Professio not be required of churches entering communion, the demand that ended the Zoghby initiative, as section 8 recounts. On the Eastern side, the Synodikon of Orthodoxy anathematizes Barlaam and Akindynos in the liturgy itself each year, and liturgical embedding makes it the harder instrument, so the Orthodox profession would own those anathemas as binding Orthodoxy's own teaching without striking the confession of the others. Nothing is deleted on either side. Nothing is exacted of the whole, which is what patrimony rather than condition means in practice.

### **The terrain.**

The choreography names the terrain. Moscow broke communion with Constantinople in 2018, a breach Constantinople has not reciprocated, and Crete showed the autocephalous churches straining to act as a set, so the Orthodox professions would come severally and slowly, if at all. The proposal absorbs that, for tears slow reception and do not bar it, but the paper does not pretend the East can sign as one.

### **The geometry.**

And the geometry is owned. If Eastern and Oriental recognition is still live work, communion following the professions makes Rome for a time the hub between communions not yet at one altar with each other. Staged and asymmetric communion is intended, the diptych mechanics will strain, and the strain is preferred to the pretense of a single day. Communion follows the professions, and no joint definition is asked or needed first, for the professions define nothing. They receive.

### **Falsifiability, both ways.**

So that the proposal is falsifiable rather than pious, its reception is specified too. Concelebration and shared communion restored see by see. Names restored to the diptychs. The professions echoed in catechisms and liturgical books across a generation. The contested definitions left to the reunited channel, where Vatican I would stand before the whole Body as a proposal of the Roman church and the Palamite councils as a



proposal of the Orthodox, each to ripen or wait as confession spreads or does not. Visible rejection is legible by the same mark, standing synodal condemnation renewed rather than lapsed. The falsifiability is asymmetric, and the asymmetry is stated as design rather than discovered as flaw. Reception requires all the communions. Rejection completes only when even the defining church abandons the content, as the Orientals abandoned Eutyches while honoring Dioscorus. So a live definition still confessed by its definer can never reach rejected, and not yet received is a stable state, not a waystation. That is why the mutual act is the only exit, and it is offered as one.

### **Scranton's part.**

The churches of Scranton have a stated part as well. Their declaration of 2008 already makes the first two professions in substance, so their part is not to profess but to be received back, which is the very mechanism section 8 says a body formed by leaving requires. The proposal names its own first test case.

### **The price, and the end.**

What the proposal asks was stated in the memorandum and is not restated softer here, no renunciation of content, the end of exaction. The asking is not small. For Rome it is the *ex sese* collision of section 4, a real walking back of the second millennium's self-understanding, of the kind the reversal inventory of that section shows she has already performed where she had overreached, and performed well. For the East it is the exclusivist claim weighed and declined in the same section. The professions cost each side its claim to be the whole, and what they purchase is the end the Lord prayed for, that they may all be one, so that the world may believe. For Rome the purchase is double, for the mutual act buys back the weight of her own word, and corrections that now read as defections could be received as the health of a church that exacts no more than is hers.

## **8. Precedent**

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The position is not improvised. It stands where four traditions meet: Eastern Orthodox ecclesiology, the Catholic *ressourcement* of Vatican II, Anglican sacramentalism, and Vincentian first-millennium conciliarism, gathered under a single principle, the faith of the undivided Church.

### **The lineage.**

Its lineage is definite: the Vincentian canon, the ressourcement of de Lubac, Congar, and Ratzinger, and the communion ecclesiology of Zizioulas. One sentence of that lineage deserves quotation in full. In the Graz lecture of 1976, later gathered into *Principles of Catholic Theology* (Ignatius Press, 1987, p. 199), Ratzinger wrote that “Rome must not require more from the East with respect to the doctrine of primacy than had been formulated and lived in the first millennium.” It is the nearest sentence to this paper’s thesis ever written by a future pope, debated since in the 2024 study this paper cites, and it is claimed here as lineage, not as authority.

### **Zoghby.**

Nearest of all stands the Zoghby Initiative of 1995, in which a majority of a Catholic (Melkite) synod professed nearly this confession, the whole faith of Orthodoxy in communion with Rome as first among the bishops, “according to the limits recognized by the Fathers of the first millennium.” That profession was accepted as sufficient for communion by neither party. Rome required that the developed doctrine of the primacy be upheld in full. The Antiochian Orthodox held that intercommunion is the last step, not the first. It is cited not as proof that this works, but as the nearest ecclesial attempt to state it from within, which surfaced the very question this confession raises.

### **Scranton, and the objection.**

One living institution must also be named, or the lineage is incomplete and the omission will be read as evasion. The Union of Scranton, the Polish National Catholic Church together with the Nordic Catholic Church, professes in its Declaration of 2008 almost the whole of this position. It stands on the Vincentian canon and the faith of the undivided first millennium, acknowledges the Bishop of Rome as first among equals, rejects the definitions of 1870 and the Marian dogmas, holds conservative morals, and possesses orders in a succession Rome does not contest. It is the nearest institutional embodiment of this position, and it exists by separation. That fact states the objection to this confession more sharply than any critic. If the position is livable there, why is it held here, at the Roman altar and at the cost section 3 describes? The answer is the confession’s own logic. Its end is the reunion of the great

communions, and reception belongs to the whole Body. A sound small body formed by leaving does not heal the division. It adds one more separation for the whole to receive back. Scranton proves the confession can be lived and governed. It does not show the way home.

### **Defiance, not evasion.**

The comparison must also be stated at its sharpest, and the right charge chosen. It is not concealment, for this document is a published confession and the non-assent is stated in plain terms. Both parties have declared. One left. The charge that sticks against us is defiance, not evasion. We publish the dissent and approach the altar anyway, which is a claim of right, and in Rome's law public material dissent is the graver posture, not the lighter. The reply is the confession's logic once more. Reception is an act of the Body, so an appeal for re-reception must be lodged from inside the body that would receive it, and leaving forfeits the standing to be received back. The claim of right is exactly that claim, that a son appealing to the whole Body's future reception may stand at the altar of the part that must one day join in receiving it. Rome denies him the right. He asserts it and bears what follows. The cost of staying is sacramental, not merely social, the same cost section 3 names. Scranton pays its price in separation. We pay ours at the altar. So we remain where we are, appealing from within, and those who judged otherwise and left answered the same question with a different arithmetic of costs, not with a different faith.

### **Why not Orthodoxy.**

The harder rival is not Scranton but the East, and the question must be asked at full strength, for this confession's own scoring invites it. The Hesychast definitions arguably pass the rules and fail only on reception, while Vatican I is judged to fail both, and a move from one first-tier altar to another is no schism and adds no separation for the whole to heal. Why then do we not enter Orthodoxy? For two reasons, stated plainly. First, the door has a price identical in kind to the one we already pay. To be received into Orthodoxy is to profess that the Orthodox Church is the one Church of Christ and, where the Palamite definitions are pressed, to hold as dogma what this confession holds as not yet received. The convert does not escape post-schism assents. He exchanges Rome's for the East's, and this confession holds both unreceived. The gate should

be named exactly, for a sharp reader will press it. What bars entry is not Palamas, whose definitions our own scoring calls the nearest to receivable. It is the exclusivist profession required at reception, that Orthodoxy alone is the Church, and that claim this confession judges to fail on the merits, as it judges Rome's counterpart. So the exchange at the gate is like for like, an assent that fails the rules for an assent that fails the rules, and the Palamite question rides behind a door we could not honestly pass. Second, the appeal this paper makes must be staffed from inside. Reception is rendered by communions, so a confession that waits on the reception of the whole Body needs holders standing in each part of that Body, Romans in Rome and Orthodox in Orthodoxy, each appealing within his own house. Our place in the Roman house is biography and providence, the house of our baptism, not a verdict that Rome's claims are stronger. An Orthodox who holds this confession should stay where he stands for the same reason. If either of us crossed, the appeal would lose a voice where it needs one and gain nothing where it is already heard.

### **Where this position lives today, and the nearest rival.**

No communion professes this whole synthesis, but every plank of it has a living community. The streams that hold both halves at once, the ecumenical instinct and the conservative morals, are few enough to name, the Eastern Catholic churches, the evangelical-catholic Lutherans of the *Pro Ecclesia* circle, the Anglo-Catholic and Continuing bodies, and the alliance called the ecumenism of the trenches that has run from Evangelicals and Catholics Together in 1994 onward. The scarcity has a structure worth knowing. Those most open to reunion commonly lean liberal in morals, and those most conservative in morals commonly lean against reunion, so a position that is both at once will feel lonely without being wrong. One rival then remains to be answered, and it is the nearest of all. A Catholic can move to an Eastern Catholic church, Melkite or Ukrainian, and hold nearly all of this in a rite and a culture built for it, as the Zoghby profession showed, and Rome's answer to it is the answer here too. The move softens the cost in culture and in company, not in law, for the Eastern Catholic is bound to the developed dogmas exactly as the Latin is. It is a good home and an honest one, and we commend it. It is shelter along the same road, not a door out of the question. That so many traditions converge here shows the position has precedent and

resources, not that it is thereby proven. A lineage answers the charge of novelty, not the question of truth, which the arguments must carry on their own.

## What remains open

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This confession does not claim to have healed the divisions of the second millennium. It offers a path, not a settlement already reached, a place to stand and to pray while the long work of reunion goes on, work that may fall to later generations more than to the present one. We expect to labor toward reunion, not to have arrived at it. The questions it has not resolved follow.

### **The number of the sacraments.**

Whether the fixed enumeration of exactly seven belongs to the deposit, or is a later Western articulation held lightly as the *filioque* is, we have not resolved. We keep the ancient number while confessing that its status is not yet settled.

### **The last things.**

We have not here worked out the state of souls after death, that is, purgatory, the particular judgment, and the indulgences, where East and West divided sharply. We keep the ancient prayer for the dead and leave the rest to the longer work of reunion. The scope rule is applied here rather than dodged. The definitions of purgation at Lyons and Florence, and *Benedictus Deus* on the immediate vision are acts put forward as final, so all three stand not yet received in what they add beyond the shared core, which is the prayer for the dead that all four communions keep.

### **The edges of the canon.**

The core of Scripture is received everywhere and always, but its margins are not yet one. The Old Testament's deuterocanonical books, and a few long-disputed writings, are numbered differently by Rome, the East, and the Reformation. We hold the canon the undivided Church received while confessing that its exact extent, at the edges, is still unsettled among us.

### **The nature of grace.**

Whether sanctifying grace is best confessed as the West's imparted gift or the East's uncreated energies, we do not adjudicate. We hold the reality both intend and leave the metaphysics open. We note plainly that for the Orthodox this is not open but was closed as dogma at the

Hesychast councils of 1341 to 1351, so to leave it open is itself to decline to receive those councils as binding on the whole Church. That is the Eastern counterpart to declining Vatican I, but the two declinations are not symmetric. Tested by the rules of section 5, the Hesychast definitions fare better than Vatican I. Their seed is Cappadocian and Maximian, the same kind drawn out, and Barlaam's denial threatened a standing practice of prayer and the confessed reality of theosis, so they arguably pass the first and third conditions and fail only the second, non-reception by the whole Body. That is not a mere cutoff choice. Non-reception is the criterion the whole confession rests on. The costs are then two on each side, and nearly symmetric. Each communion is denied, on the merits, the identification of the whole with itself, Rome in section 3 and the East in section 4. Each is asked to hold its post-schism definitions as unreceived by the whole. The one inequality that remains is this. Vatican I is judged to fail the rules themselves as well as reception, while the Hesychast definitions arguably pass the rules and fail on reception alone. That failing is our weighing, submitted like every other into the Body's reception, so the grade remains what section 3 defines, not yet received, never condemned. The essence and energies doctrine is the strongest candidate in any of the ancient communions for a development a reunited Church might one day receive, and it is declined here only as unreceived, not as failed. It is already partway down the channel, for Rome has never condemned the distinction and tolerates the commemoration of Palamas in her own Eastern churches. And the two strongest not-yet-received candidates now bracket one question between them, Benedictus Deus confessing intuitive vision of the divine essence, the Palamite councils an essence imparticipable and known in its energies. The collision is not resolved here. It is the cleanest example of what only the reunited channel could adjudicate.

### **Usury.**

The Fathers condemned it with one voice, and the later Western unwinding of that condemnation is not an expansion but a retraction. Whether it passes the retraction rule of section 5, that the referent changed while the principle did not, we have not resolved. It stands as the hardest test of the criterion.

### **Marriage after divorce.**

The Lord's prohibition of divorce is consensus. The Western doctrine of an indissoluble bond and the Eastern economy that admits penitential remarriage are two drawings out of that word, each received in one part of the Body only. The case is worked in appendix B, where the rules jam, and which is the true development we have not resolved.

### **The wound in the one Body.**

How a single visible Church can span a broken communion, Rome, the Eastern Orthodox, the Oriental churches, and the Church of the East, with the churches of Scranton beside them, each holding the deposit yet not all at one altar, and the churches of the Reformation holding real planks of it further out, is the very wound this confession feels and cannot by itself close.

We hold, then, that we are on the way and not yet at the goal, that we may be wrong and will gladly be corrected by the mind of the whole Church, and that the reunion we pray for may be the slow work of centuries. This is not a claim to have finished. It is an account of where we stand, and of how much remains.



## Appendix A. The acts, graded

Every disputed act weighed in this paper, its grade, and where the weighing is argued. Grades are defined at the end of section 1, and one is glossed here because the table works it hardest. Declined, throughout, means not yet received, never condemned.

| Act                                            | Grade                                                                            | Argued        |
|------------------------------------------------|----------------------------------------------------------------------------------|---------------|
| The seven Councils (325 to 787)                | received, materially,<br>across open tears                                       | 3, 4          |
| Constantinople 879 to 880                      | honored with the seven                                                           | 4             |
| The robber council (449)                       | materially rejected four<br>of four, completed                                   | 4             |
| The filioque, as content                       | confessable, per<br>Maximus to Marinus                                           | 3             |
| The filioque, as creedal insertion             | declined on form, never<br>cured                                                 | 3             |
| The filioque, as Western<br>liturgical use     | held lightly                                                                     | 3             |
| Florence and Lyons on<br>purgation             | act not yet received<br>beyond the shared prayer<br>for the dead                 | closing       |
| Benedictus Deus (1336)                         | act not yet received in<br>what it adds                                          | closing       |
| Laetentur Caeli (1439), the<br>primacy defined | not received, a formal act<br>without material<br>reception, annulled in<br>1484 | 4, 5          |
| Florence 1442 on the unbaptized                | formula kept at its seed,<br>rigor declined                                      | 2, 3          |
| Trent, doctrinal decrees                       | kept gladly where they<br>restate the undivided<br>faith                         | 3             |
| Trent, canon of Scripture                      | held open at the edges                                                           | 3, closing    |
| The seven-sacrament count, as<br>used          | held lightly, an edge                                                            | 2, 4, closing |
| Trent, defining the count as<br>dogma          | act not yet received, the<br>count held open                                     | 3             |
| Trent, justification as sole<br>account        | act not yet received, the<br>account honored, the<br>question open               | 3, B          |
| Trent, finality of the anathemas               | declined                                                                         | 3             |

| <b>Act</b>                                  | <b>Grade</b>                                                                         | <b>Argued</b> |
|---------------------------------------------|--------------------------------------------------------------------------------------|---------------|
| Tridentine profession of obedience          | not kept                                                                             | 3             |
| Jerusalem 1672, metousiosis required        | declined, the same over-articulation in Greek dress                                  | 3, 4          |
| Constantinople 1755 on rebaptism            | below dogma, a decree of three patriarchs never pan-Orthodox, an innovation of rigor | 4             |
| Encyclical of the Eastern Patriarchs (1848) | taught with authority short of definition                                            | 4             |
| Condemnation of phyletism (1872)            | taught with authority short of definition                                            | 4             |
| Quanta Cura and the Syllabus (1864)         | declined, overreach against the pre-Constantinian seed                               | B             |
| Immaculate Conception (1854)                | act declined, content without Eastern help                                           | 3, 4          |
| Vatican I (1870)                            | declined, fails the rules on our weighing, not yet received and not yet rejected     | 3, 4, 5       |
| Assumption (1950), as content               | arguably ripening in the channel                                                     | 3             |
| Assumption (1950), as act                   | declined                                                                             | 3             |
| Palamite councils (1341 to 1351)            | not yet received, the nearest to receivable                                          | closing       |
| Orthodox exclusivist claim                  | fails on the merits, on our weighing                                                 | 4             |
| Apostolicae Curae (1896)                    | declined as final act, the question open, healable by the raiser                     | 3, 6          |
| Mortalium Animos (1928)                     | declined, corrected by the Council's opening                                         | 2, 4          |
| Dignitatis Humanae (1965)                   | a true reversal, received as recovery of the elder teaching                          | 4, B          |
| Ordinatio Sacerdotalis, as content          | first-millennium consensus                                                           | 2             |
| The 1995 Responsum, as act                  | awaits the whole                                                                     | 2, 3          |

| <b>Act</b>                           | <b>Grade</b>                                                                                         | <b>Argued</b> |
|--------------------------------------|------------------------------------------------------------------------------------------------------|---------------|
| Death penalty, right of the sword    | stands in principle, exercise counseled by prudence                                                  | 5, B          |
| The 2018 revision and Fratelli Tutti | declined, a retraction the rules do not license, the counsel alone received                          | 4, B          |
| The papal words of 2016 on Luther    | words, not acts, the unretracted collision recorded                                                  | B             |
| Fiducia Supplicans (2023)            | fails against the consensus of section 2, refused in reception within and beyond the Roman communion | 2, B          |
| The words of 2026 on war and prayer  | words, not acts, the missing just-war qualification recorded                                         | B             |
| The veil of First Corinthians 11     | binds unless the retraction showing is made good                                                     | 5, B          |
| Usury                                | open, the hardest test, burden on the redescription                                                  | 2, 5, closing |
| Marriage after divorce               | the ban is consensus, bond against economy open, the rules jam                                       | 2, B, closing |

## Appendix B. The rules applied to the hard cases

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The hard cases are worked through the rules in full here rather than in sections 3 and 5, so that the rules stay legible in the body and the full arguments stay available to the reader who wants them. The present pontificates are graded here as well, and a closing exhibit sets out the confession evidence for the crossings on which section 4 rests.

### The death penalty.

The case is named more than once in this confession and must be argued in full. It generated the rule of accommodation and characterization of section 5, the rule that reaches Matthew 16 and stops short of Vatican I. And its verdict opens a second front of dissent against present Roman teaching beyond the dogmatic declinations, which is chosen deliberately, by the case's own closing principle.

The scriptural ground is twofold. Genesis 9:6 roots the penalty in the image of God, before Moses and addressed to mankind, and Romans 13:4 teaches that the magistrate does not bear the sword in vain, God's servant and an avenger who carries out wrath. The second text is apostolic teaching to a Church under Roman jurisdiction, not a Mosaic precept, so it survives the cut that follows, and it is harder to read as merely descriptive than the first. The Mosaic judicial precepts themselves, such as the rule of Numbers 35:31 against ransoming a murderer's life, are dead on the cessation of the Law's judicial precepts (Summa I-II q. 104 a. 3, the division itself at q. 99), and may not be cited as presently binding. Genesis 9:6 is contested, prescriptive on the traditional reading and descriptive on another.

Romans 13:4 requires more care, for the slavery case of section 5 opens an objection. Ephesians 6:5 and Colossians 3:22 are also apostolic, also imperative, also addressed to churches under Roman jurisdiction, and they tell slaves to obey masters, yet they were not allowed to bind slavery. Why does Romans 13 bind the sword? Because the texts do different work. Ephesians instructs Christians how to live inside an institution and says nothing of the institution's standing before God. The master is never called God's servant in his mastery. Romans 13:4 characterizes the office itself. The magistrate is *diakonos theou*, God's servant, an avenger who carries out wrath, a positive theological account of the sword and not a counsel of submission to it. Accommodation cannot bind. Characterization can, by the rule of section 5, with the suspicion its preamble states. The genre scruple applied to Genesis 9:6 must also be met here, whether the sword-clause merely observes how Roman magistrates behaved. It does not read as observation. St. Paul wrote under Nero, of magistrates who did not reliably avenge evil or praise good, so as description the clause would have been false to the facts before his eyes. It stands as an account of the office's end in God's economy, *ekdikos eis orgen*, an avenger unto wrath, a prescription of

purpose and not a report of practice. Within that limit the case proceeds. If these texts bind, the second witness cannot unbind them, by the guard of section 5. The retraction rule can open the case only by showing that the referent changed, and that argument is weaker than usury's, for money changed its nature and murder did not. What changed is circumstance, the modern state's capacity to protect without killing, and a change of circumstance grounds prudence, not retraction.

The patristic record must also be stated at its true width. The right of the sword in principle is well attested and never denied, but the Christian's own participation was contested from early on. Tertullian and Lactantius forbade Christians to bring capital accusations, St. Ambrose counseled clemency, and Innocent I permitted the magistrate's sword while treating the Christian's use of it as fraud. The finding is not unanimity but an acknowledged right with a running counsel of reluctance, and that is still enough to block a retraction, for a contested exercise does not retire an acknowledged principle.

Applied honestly, the rules yield this. The right of the sword stands in principle. Its exercise may be counseled against on prudence, as part of the Fathers already counseled.

The present Roman teaching must then be read at its own words rather than softened into receivability, and its words claim more than prudence. The Catechism as revised in 2018 teaches that the death penalty is "inadmissible because it is an attack on the inviolability and dignity of the person," a *per se* ground, quoting the address of 2017 that had called the penalty "*per se* contrary to the Gospel," and Fratelli Tutti adds that "there can be no stepping back from this position." That is a retraction claim, not a counsel, and the prudential matter in the same paragraph, more effective detention and a new penology, grounds only a counsel and not the ground given. Against it stands what the retraction claims to retire. Innocent III required of the returning Waldensians, as a condition of communion, the confession that the secular power can exercise a judgment of blood without mortal sin, the medieval church exacting as a test of orthodoxy the very affirmation the present text calls an attack on the dignity of the person. The Roman Catechism of Trent called the just use of that power an act of paramount obedience to the commandment against murder. Pius XII taught that the condemned man has by his crime dispossessed himself of his right to life.

The letter promulgating the revision asserts an authentic development of doctrine not in contradiction with prior teaching, and the assertion fails on these documents, for a development that calls its seed an attack on human dignity is not of the same kind as its seed. The retraction rule is not satisfied, for murder did not change its nature, and the second witness cannot unbind what revelation binds. So the act of 2018 is not received here. It is declined, an attempted retraction the rules do not license, and the scandal it caused,

put formally in the appeal of dozens of Catholic scholars to the cardinals in that year, is the sense of the faithful doing what this paper says it does. What can be received is narrower, the counsel that where bloodless means protect the common good the sword should rest, which part of the Fathers already counseled. The ground here is narrower than the tradition's usual citation, one text contested as to genre and one defended above against the same scruple, and the conclusion carries that weight. The criterion cut against conservative comfort at usury. Here it refuses a present Roman act outright, and the confession accepts both cuts, for a rule that only ever wounds the other side is not a rule.

### **Religious liberty.**

This is the reversal the Society of Saint Pius X has made its central charge against the Council, and the charge of contradiction is examined here rather than waved at, for on the texts the Society is right that there is one. *Quanta Cura* in 1864 condemned, with the full formula of reprobation, the proposition that liberty of conscience and worship is each man's personal right which ought to be legally proclaimed in every rightly constituted society, and Gregory XVI had called that liberty a madness, *deliramentum*. *Dignitatis Humanae* in 1965 declared that the human person has a right to religious freedom, an immunity from coercion within due limits, founded on the dignity of the person, and that this right is to be recognized in the constitutional law by which society is governed. Read as they stand, the second text teaches what the first condemned. The harmonizations on offer, that the nineteenth century condemned only an absolute liberty grounded in indifferentism, or that only the state acting on its own authority was disarmed while the Church's coercive authority over the baptized stands untouched, are learned and strained, and Lefebvre's judgment that the foundation had changed is nearer the documents than the seamless readings are.

So the contradiction is granted. What the Society concludes from it is that the Council defected. What this paper's criterion finds is the opposite, and the rules show why. The first millennium speaks with two voices here, and they are not of equal age. Before the empire turned, the Church confessed liberty. Tertullian wrote that it is a fundamental human right, a privilege of nature, that every man should worship according to his own convictions, and that it is no part of religion to compel religion. Lactantius wrote that nothing is so much a matter of free will as religion, and that religion is to be defended not by killing but by dying. That is the seed, and it is scriptural before it is patristic, for faith is assent and assent under force is not faith, which Aquinas himself grants in forbidding that the unbaptized be compelled to believe, because to believe depends on the will.

The counter-voice begins with St. Augustine against the Donatists, the *coge intrare* pressed from a parable, and hardens across the second millennium into

Aquinas's judgment that the relapsed heretic be delivered to death and into Exsurge Domine's censure of the proposition that burning heretics is against the Spirit. By this paper's own rules the hardening cannot bind. It binds where the seed left free, and against the seed, and the seed is the martyrs' own ground, for a church that coerces belief unsays what she said when she had no sword.

The second witness speaks the same way. What nature discloses about assent is that it cannot be commanded, and a witness that protects the pagan's conscience from compulsion, as Aquinas's does, protects the heretic's on the same ground of nature. Nor was the coercion doctrine ever received by the whole Body in the sense the tests require, for the East knew coercion and practiced it under the emperors, but the pre-Constantinian confession stood unretracted beneath the whole edifice, quoted by the very declaration that restored it.

So the case yields this. *Dignitatis Humanae* is a true reversal, and it is the recovery of the elder teaching, an accretion peeled and the seed restored. Benedict XVI's address of 2005 conceded discontinuity at the level of applications and called the Council's teaching a recovery of the deepest patrimony of the Church, the patrimony of the martyrs, and on this the paper agrees with him against the seamless readings and against the Society alike. The Society reads the record rightly and the remedy wrongly. It mistakes the demolition of a second-millennium accretion for the demolition of the faith, and this finding, made on the Society's own strongest case, is the whole difference between their position and this paper's.

One pairing remains, for the cross-examination writes itself, that the paper receives the reversal of 1965 and refuses the reversal of 2018. The rules split the two, not preference. Coercion was never a unanimous teaching, Tertullian and Lactantius standing against it, so the retraction rule never engages, and revelation never bound coercion, a parable pressed being at most accommodation, while Romans 13 binds the sword by characterization. So the second witness could carry liberty and cannot unbind the sword, and the two verdicts fall out of the same rules applied to different records.

### **The veil.**

In St. Paul's world the covering was the public sign of a woman's honor and standing, its absence a claim or a shame legible to all, so the apostle bound a sign to the order it signified. Where the covering has ceased to carry that signification, the principle, honor and order in worship, seeks another vesture, as modest dress and decorum now carry what the veil once carried. And the showing, as far as we can carry it, meets the retraction rule's own discipline, for a sign's signification is its nature, so a change in what the sign says is a change in the object itself, not in the fashion around it. The rule's reach must then be guarded, for a hostile reader will generalize it, any sign-grounded practice revisable the moment culture stops reading the sign, and the guard is

this. The showing licenses exchanging one vesture for another that carries the same signification. It never licenses retiring the signified order itself. Honor and order in worship remain bound, and a showing that removes the principle rather than re-clothing it fails at the start, whatever it says about fabric. Nor can the rule be borrowed against the moral consensus of section 2, whose commands are not signs of an order but the order itself. The burden stays on the showing, and section 5 states the consequence if it fails.

### **Marriage after divorce.**

The bond question of section 2 is worked here rather than left as a bare entry in the closing list, for a paper that applies its rules to head coverings and not to remarriage would deserve the suspicion that would follow. The prohibition of divorce is the Lord's own word, the Fathers held it with severity, and no communion of the first tier blesses divorce as a good. What divides is what follows failure. The West drew out an ontological bond that no pastoral economy can touch, annulment declaring a marriage never to have been rather than dissolving one that was. The East from St. Basil's canons onward treated remarriage after divorce penitentially, by *oikonomia*, a concession marked as concession in the rite itself. Each is a second-millennium drawing out of the same first-millennium severity, and each is received in one lung only.

The rules are then applied, and they jam. The expansion test cannot prefer either drawing-out, for each is legible in its own tradition and neither is legible in both, so the second condition fails twice over. The retraction rule has no purchase, for neither side claims the referent changed. And the second witness straddles, as section 5 already grants, for marriage is a natural reality carrying an instituted sacrament, so nature speaks to the goods of the bond and cannot adjudicate the sacrament's juridical form. The jam is the finding. Two developments, each received by one lung and refused by the other, is precisely the not-yet-received state this paper defines, and neither is condemned. The bond against the economy therefore stands in the closing list not because the paper declined to apply its rules but because the rules, applied honestly, return the question to the reunited channel, which is where this paper says every such question belongs. A stalemate reached by the rules is not an evasion. It is the criterion telling the truth about where the Body stands.

### **Trent on justification.**

The boldest grading of section 3 is worked here in full. The first millennium praised justification without defining its mechanism. The Greek Fathers scarcely used the category, St. John Chrysostom on Romans speaks in courtroom figures where St. Augustine speaks of healing, and no council of the seven touched the question. Trent's sixth session closed that open field, defining one account of the mechanism, inherent renewal as the formal cause, under canons aimed at those who denied renewal, though drawn broadly enough to strike those who



merely kept the courtroom figures. By the test of section 5 that is binding where the seed left free, against opponents who confessed the creed, the reverse of Ephesus again. The Roman rejoinder will apply this paper's own test, that the forensic-only account made the standing confession of regeneration unsayable, baptism now saves you, you were washed, you were sanctified, you were justified. The reply is agreed and absorbed. The canons that guard regeneration are kept gladly, and section 2 confesses it. What is held open is narrower, the elevation of one mechanism, inherent renewal as the sole formal cause, to the only lawful account, which no standing confession required. So the account itself is honored as a venerable Western reading and its question held open, while the elevation to sole dogma stands not received, exactly as section 3 declines the parallel elevation of transubstantiation.

### **The present pontificates, graded.**

The record since 2013 must be entered, or the paper will be read as auditing only the safely dead. Three items are graded. First, *Fiducia Supplicans* of 2023, which authorized non-ritual blessings of couples in same-sex and irregular unions while professing the doctrine of marriage unchanged. The act touches the moral consensus of section 2, which this paper holds with a firmness above many a dogma, and its reception is the swiftest and most legible refusal in the modern record. The episcopate of Africa refused it within a month, with Rome's consent. The Ukrainian Greek Catholic Church declared it without force in her own law. Conferences from Poland to Kazakhstan restricted it to nothing. Beyond the Roman communion the Coptic synod suspended the theological dialogue outright, judging that a blessing of such unions, whatever its type, blesses sin, and Moscow found that the declaration departs in fact from the fidelity it professes. The act is graded in plain words, for the declined grade fits it in neither direction. It claimed no finality, and Rome consented within a month to its non-application in Africa, so the scope rule of section 3 never engages. And its fault is not, at root, a failure of reception. It fails against the two witnesses of section 4, for Scripture names the unions in question sin and the natural law reads them the same way, and God does not bless what He has called sin, nor can any act of any see make Him. What reception adds is the seal. The moral consensus of section 2 is the whole Body's reception of that truth, delivered long ago, so the act does not wait on the Body but stands against what God has said and the Body has received. The refusal that followed, within and beyond the Roman communion within months, is therefore entered not as the ground of the verdict but as its confirmation, the ecclesiology of section 4 at work in the present, nearer in kind to the robber council's fate than to Vatican I's wait.

Second, the papal words of 2016 on Luther, that on justification, on this very important point, he was not mistaken. This paper itself stakes a convergence near the one those words gesture at, and grades Trent's sixth session as section

3 does, so the collision recorded is not with the words' content but with their house. Rome's law holds the canons of that session defined and final, and her pontiff honored the man they anathematized, in word, in the statue given the hall, in the stamp of the anniversary, without retracting anything. A church that does this is living by material reception while professing ex sese, and the exhibit is entered as evidence for section 4, not as grievance.

Third, the words of 2026 on war, that the King of Peace does not listen to the prayers of those who wage war. The homily grounds the sentence in Isaiah's own words, hands full of blood, so the citation is the pope's own and the grounding is not this paper's correction of him. What the homily does not carry is the distinction the tradition draws from St. Augustine to Aquinas, that lawful defense of the innocent is not sin, and read flat without it the sentence would unsay the same office of the sword this appendix defends. So the words are received as the prophet's sentence on the unjust, where the homily's own citation places them, and the missing qualification is recorded as missing, a small item entered for completeness, words and not acts. These gradings are not a catalogue of grievance against the living. They are the criterion applied to the present as it was applied to the past, and it cuts against the present Roman voice exactly as often as the record requires, no more and no less.

### **The crossings, the evidence exhibited.**

The Roman counter-evidence was worked in section 4, Sardica, the Hormisdas signature with its rider, canon 28, Honorius in both halves, and the crossings on which the whole anti-freeze argument rests deserve the same weighing. For Chalcedon across 451, the content Chalcedon guarded is one Christ, perfect in Godhead and in manhood, consubstantial with the Father and with us, the natures unconfused. The Severan tradition confesses each element. The double consubstantiality stands from the Formula of Reunion of 433, which St. Cyril signed, and remains the standing confession of the Oriental churches. Severus of Antioch anathematizes Eutyches by name, condemns any denial that Christ's flesh is consubstantial with ours, and teaches that within the one incarnate nature the difference of Godhead and manhood is preserved unconfused, the very adverb Chalcedon wrote. What is refused is the formula of two natures after the union, feared as a division of the one Christ, and on this paper's grading that is a quarrel about words, which is exactly what material reception means. For the Church of the East across 431, the content Ephesus guarded is the one Son, not two. Babai the Great, that tradition's dogmatic doctor, confesses two natures and two qnome in the one parsopa of the one Son, and his hymn, sung to this day, begins, one is Christ the Son of God, worshiped by all in two natures. The declaration of 1994 did not create that confession. It recognized it, which is what this paper's rule requires of a modern agreement, that it corroborate and not close. The exhibit is short because the claim is narrow. The crossings need only that the guarded faith is confessed across the tear, and it is.

## Annex. The memorandum

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*An open letter on the reception of the disputed definitions, with a proposal.*

### **To.**

The Dicastery for Promoting Christian Unity. The Ecumenical Patriarchate and the holy synods of the Orthodox churches. The synods of the Oriental Orthodox churches. The Assyrian Church of the East. The Saint Irenaeus Joint Working Group, the North American Orthodox-Catholic Consultation, and the standing dialogue commissions. The address matches the argument, for the paper that follows holds that all four ancient communions carry the deposit, so all four are addressed.

### **Communicated also.**

To the churches of the Union of Scranton, whose declaration of 2008 professes nearly what this paper professes, and whose part in the act proposed is therefore not to profess but to be received back, the proposal's first test case. To the Anglicans of the high and orthodox parishes, whose contested orders this paper grades an open question, healable by the party that raised the doubt, as Rome healed one in 2001. And in brotherhood to the confessional Lutheran and Reformed churches, who hold real planks of this confession and whose witness belongs to the *sensus fidelium* of the whole Body. The mutual act is not theirs to enact, for the professions proposed belong to the synods of the ancient communions. But the paper names these churches, grades their standing, and owes them the courtesy of address rather than report.

### **The thesis.**

A council binds when the whole Body receives it, and reception is material, the coming-to-confess of the faith defined, not the formal acceptance of a formula, an assembly, or an act. On that definition the record shows something the standard account misses. The Body has been torn since 251, at Ephesus and Chalcedon it tore again, yet the seven councils stand, and reception across the open tears is attested wherever it has been checked. The church that refused Ephesus confesses, in Babai its doctor and by common declaration of 1994, the one Christ that Ephesus defined. The churches that refused Chalcedon confess, on first-millennium evidence and by the agreed statements since, the faith it guarded. Binding by act alone never existed in the conciliar age. Every council's authority completed by reception across whatever tears then stood. What division changes is the speed and legibility of the verdict, not its mechanism. It follows that the definitions each communion has made since the great tears, Vatican I and the Marian definitions on the Roman side, the Palamite councils on the Orthodox, stand not yet received by the whole, and not yet rejected,

and that no single communion, ours included, can close those questions for the whole by any act of its own.

### **The proposal.**

The instrument exists and the Melkite synod of 1995 supplied its genre, a synodal profession, here made mutual and multilateral. Each communion, by the synod competent in it, professes three things. The shared deposit of the councils. That its post-schism definitions are held as its own theological patrimony, taught in its schools and prayed in its liturgies, not imposed on the other communions as conditions of communion. And recognition of the others' baptism, orders, and eucharist, in force from Rome's side fully in law, and from the East's in much though divided practice. Between the Eastern Orthodox and the Oriental churches that recognition is itself the live work of the third profession, so the act stages rather than presumes a single day. Communion follows the professions. No joint definition is asked, for the professions define nothing. They receive. The contested definitions then stand before the reunited Body as proposals of the churches that made them, to ripen or wait as confession spreads or does not. Reception of this proposal is visible and falsifiable, communion restored see by see, names restored to the diptychs, the professions echoed in catechisms across a generation. So is rejection, standing condemnation renewed rather than lapsed.

### **What this asks, and its price.**

No church is asked to renounce the content of what it teaches. Rome is not asked to unsay what 1870 defined, nor the Orthodox what 1351 defined. Each is asked to cease requiring of the whole what the whole has not confessed, which the paper argues is all the first millennium itself ever required. For Rome the asking is a real reversal of practice and of self-understanding, for Pastor Aeternus claims a binding force owing nothing to the Church's consent, and to hold that definition as patrimony rather than exact it as a condition is to walk part of the way back toward the first millennium. Section 4 prices this collision. It argues only that the walk is of a kind Rome has already made where the second millennium overreached, at Florence's rigor on the unbaptized, at the coercion of conscience, at the ban on praying with the separated, and made well. What is asked is not the surrender of a possession but the retirement of a claim to one. And the retirement returns more than it costs. A see that may not be corrected spends her credibility with every correction she in fact makes. A see whose acts await the whole Body's reception can correct herself and remain herself. The Orthodox are asked the mirror price, that the identification of the whole Church with themselves be held no longer as a condition. And the authors pay a price of their own. We are Roman Catholics, and by Rome's present law this position is public material dissent, which we do not claim she permits. We hold it as an appeal to a reception the whole Body has not yet

given, and we stand at her altar bearing what follows. The end sought is not architectural tidiness. It is the Lord's own prayer, that they may all be one, as the Father and the Son are one, so that the world may believe (John 17:21). The paper is an argument that this road is the one the record leaves open.

### **The standing invitation.**

John Paul II asked in *Ut Unum Sint*, sections 95 and 96, for help in finding a way of exercising the primacy open to a new situation, and The Bishop of Rome of 2024 gathered the answers to that invitation. The proposal above is tendered as part of that solicited contribution, for it concerns the exercise. The invitation does not cover the definitions themselves, and we do not pretend it does.

### **The ask.**

That the dialogue bodies examine the material-reception thesis and the proposal of mutual professions, and that the paper be read as what it is, a working paper in eight sections written for this examination, opening with the confession it defends and closing with appendices that grade every act weighed and apply the rules to the hard cases. Its weighings are made by fallible readers and are submitted into the same reception they describe.